ARORA HILLS

Handbook of HOA
Master Rules and Regulations

Update January 1, 2022
(to March 23, 2017 Rules)

Arora Hills Homeowners Association
23030 Birch Mead Road
Clarksburg, Maryland 20871

MASTER RULES AND REGULATIONS FOR
ARORA HILLS HOMEOWNER'S ASSOCIATION, INC.

Whereas, Article VII, Section 1(a) of the Bylaws of the Arora Hills Homeowners Association, Inc. ("Association") assigns to the Board of Directors ("Board") the authority to adopt and publish rules and regulations governing the use of the HOA Area including any improvements and amenities located thereon, and the personal conduct of the Members and their guests thereon, and to establish penalties for the infraction thereof; and

Whereas, in accordance with the Ninth Amended to the Declaration, Article XIII, Section 13.1 provides that the Board shall have the power to enforce any of the provisions of the Declaration and may impose and levy reasonable fines and penalties for the violation of any of the provisions of the Declaration, Bylaws and any duly adopted Rules and Regulations ("Governing Documents"); and

Whereas, the Board deems it necessary to compile all previously adopted Rules and Regulations into one Master Rule and to include, for reference, rules from the Declaration all in one searchable document with indexing.

THE BOARD OF DIRECTORS HEREBY RESOLVES that any and all previous rules are repealed and the following Master Rules and Regulations are adopted.

Rule Hearing Notice Provided: Notice was given the 9th day of February, 2017, to the members of the Arora Hills Homeowners Association, Inc. ("Association") that the next meeting of the Association's Board of Directors ("Board") will be held on the 23rd day of March, 2017, at 7:30 p.m. at the Arora Hills HOA Community Clubhouse located at 23030 Birch Mead Road, Clarksburg, Maryland 20871 and at that Meeting, there will be a Hearing on the Proposed Master Rules and Regulations. Owners unable to attend were advised to submit comments in writing.

At the meeting on March 23, 2017, the Board held an open forum under New Business to permit owners to comment on proposed Master Rules and Regulations. A copy of the proposed Master Rules and Regulations was attached to the Notice. At the conclusion of the Rule Hearing and at the Board Meeting, the Board voted to approve the proposed Master Rules and Regulations as distributed to Owners.

At the Board Meeting of December 9, 2021, the Board held an open forum under New Business to permit owners to comment on the proposed updates to the Master Rules and Regulations. The Board voted to approve the proposed updates, the Board voted unanimously via email to approve an addition for use of string lights. The effective date of these updates and additions to the rules is January 1, 2022. Owners have been provided a copy of the updates

INTRODUCTION

Your Board of Directors (BOD) has prepared this Handbook of Arora Hills HOA Master Rules and Regulations for the express use of Arora Hills Homeowners Association Owners, their guests, and tenants.

It is intended to assist in maintaining property values, community aesthetics, and a desirable quality of life in Arora Hills.

These Master Rules have been composed and compiled from the Declaration of Covenants, Conditions, and Restrictions (the Declaration); the Bylaws; the Community Standards and Guidelines; and subsequent Board approved Rules and Regulations adopted on behalf of the homeowners.

The Rules and Regulations set forth in these Policies and Procedures were adopted by the Board of Directors pursuant to Article VII, Section 1. (a) of the Declaration, and intended to supersede and replace all previous versions of the Rules and Regulations and Community Standards and Guidelines.

DEFINITION FOR THE MASTER RULES AND REGULATION:
Public view as used in this Master Rule and the Arora Hills HOA Declaration shall be defined as follows: Public view" means a sight line within normal visual range by a person on a public or private street, alley roadway, a sidewalk or any adjacent real property

CONTENTS SUMMARY

Section I - Community Standards and Guidelines, Architectural Changes
Appendix A – ACC Application For ARCHITECTURAL CHANGE
Appendix B – Private Drainage Easement Area Hold Harmless and Indemnification Agreement
Appendix C- Architectural Control Committee Charter (ACC)

Section II- Rules and Regulations
2.1. Clubhouse Rental Use Regulations, Application Form
2.2. Pool Access and Use Rules and Regulations, Application Form
2.3. Electronic Notice and Voting Rule
2.4. Association Records
2.5. Records Retention Policy
2.6. Collection Policy
2.7. Social Committee Charter/Social Events Proposal Form

Section III-Rules Enforcement

TABLE OF CONTENTS

Introduction……... 6

.**SECTION I**

1. **Community Standards and Guidelines**

1.1. Activities……. 6
1.2. Animals……... 6
1.3. Antennas……..... 6
1.4. Barbeque Equipment……..... 6
1.5. Basketball Goal Systems….……... 7
1.6. Boats, Automobiles, Commercial, Trucks etc.……... 7
1.7. Canopies…… 8
1.8. Carpeting/Synthetic Grass……...……... 8
1.9. Clotheslines……..... 8
1.10. Construction Activities……..... 9
1.11. Day Care & No-Impact Home Based Business…… 9
1.12. Decks/Screened Porches…… 10
1.13. Decorative Objects……..... 12
1.14. Drainage/Private Storm Drainage Easement……. 12
1.15. Driveway, Access, Alley Roadway Expansion……. 13
1.16. Dog House and Dog Runs.....……..... 14
1.17. Fencing Systems…… 14
1.18. Fire Pits/Fire Bowls……... 17
1.19. Firewood……..……..... 17
1.20. Flagpoles..…….. 18
1.21. Gazebo……... 18
1.22. Generators…….. 19
1.23. Greenhouses…….…….. 19
1.24. Hazardous Materials…….. 19
1.25. Holiday Decorations…….. 19
1.26. Hot Tubs/Spas……..... 19
1.27. House & Garage, Exterior Changes, Maintenance 20
A. Air Conditioning Units……. 20
B. Attic Ventilators……... 20
C. Chimneys/Metal Flues…….. 20
D. Doors…… 21
E. Exterior Lighting (including string lights)..... 21
F. Exterior Painting…….. 22
G. Garage Maintenance……. 22
H. Garage Doors…… 23
I. Gutters and Downspouts……... 23
J. House Siding and Trimboard…… 23
K. Major Additions/Modifications…… 23
L. Roofs……. 24
M. Security Bars……. 24
N. Shutters……. 24
O. Skylights……... 24
P. Solar Panels……..... 24
Q. Steps Maintenance…… 24
R. Storm Doors……..... 25
S. Windows……... 25
T. Window Dividers …… 26
1.28. Lawn Maintenance, Landscaping, Edging …… 26
A. Landscape Maintenance …….. 26
B. Turf Maintenance…….. 26

C. Mowing enforcement front, side lots……	26
D. Low Impact Landscaping ……	27
E. Maintenance of Hedges, Trees, Shrubs….....	28
F. Impact on Adjacent Lots ……..	28
G. No Application Needed, see list ……..	29
H. Raised Garden Beds ……	29
I. Stakes ……..	29
J. ACC Applications required excpt per in G……..	29
K. Bamboo prohibited……...	29
L. ACC Applications Required, see list……	29
M. Edging/Hardscape……	30
N. Use of Rocks ……	32
O. Checklist for landscape changes applications	32
P. Use of Composting Bin……	33
1.29. Lot Maintenance…..……	34
1.30. Mailboxes and Newspaper Tubes….……	34
1.31. Patios……..	34
1.32. Patio Heaters.…….....	36
1.33. Pools..……	36
1.34 Public Utility Easement……	36
1.35. Rain Barrels…..……	37
1.36 Recreation and Play Equipment...…….....	37
1.37. Renewable Energy: Solar, Wind, Geothermal……...	38
1.38. Retaining Walls……	40
1.39. Satellite Dish……..	40
1.40. Signs……..	40
1.41. Single Family Dwelling Use……..	41
1.42. Storage Pods……..	41
1.43. Storage Sheds……	41
1.44. Storage Tanks……	42
1.45. Trash……..	42
1.46. Trees and Tree Removal……	42
1.47. Use of HOA Area……	43
1.48. Walkways……..	43
Appendix I-A, ACC Application……	43
Appendix I-B, Private Drainage Easement Agreement.....	47
Appendix I-C, Architectural Control Committee……	47
SECTION II	
2.1. Clubhouse Rental Use Regulations……...	51
Appendix II-A, Room Rental Rates……	55
Appendix II-B, Alcohol Use Policy ……..……	55
Appendix II-C, Clubhouse Rental Application…….....	56
Appendix II-D, Inspection Checklist……...	57
Appendix II-E, Non-Profit Rental Policy……	57
2.2. Pool Access and Use Rules and Regulations……	58
2.3. Electronic Notice and Voting Rules ……	62
2.4. Association Records….……...	62
2.5. Records Retention Policy……...	64
2.6. Collection Policy……	65
2.7. Social Committee Charter…….....	68
2.8. AH Facebook Page Usage Policy……	70
SECTION III	
3.1. Rules Enforcement……..	71

SECTION I - ARORA HILLS COMMUNITY STANDARDS AND GUIDELINES AND RULES AND REGULATIONS

INTRODUCTION. Community Standards and Guidelines and Community Rules and Regulations (hereinafter referred to as the "Master Rules)", as amended or supplemented from time to time, apply to all Lots, Owners, residents, guests and visitors.

These Master Rules include specific rules, procedures and guidelines for All changes and/or modifications to a Lot such as landscaping, changes to a house or garage, changes to lighting or any other changes in appearance require Architectural Control Committee (hereinafter "ACC") approval unless specifically excluded in these Master Rules. Changes made without ACC approval are violations which may be subject to the enforcement procedures and rules including but not limited to (a) required removal and restoration to pre-change conditions and (b) initial fine and continue daily fines until corrected.

Approval of a proposed change or modification to a Lot by the ACC Committee after review of the Project application, when granted, is based upon aesthetic merits only. The ACC makes no claim as to the structural integrity of an approved change or modification. Owners must observe all applicable easements and property lines when constructing approved changes. Owners are responsible for identifying whether a proposed change or modification impacts a drainage easement, Public Utility Easement and any other easement on their lot. Owners are responsible for verifying that all proposed improvements meet applicable county codes and any other applicable regulatory authorities including Washington Suburban Sanitary Commission (WSSC). The Owner is responsible for obtaining all required county permits as well as any other applicable regulatory authority permit(s). If permits are required, the Owner is responsible for verifying that any permits applications obtained for the change or modification are properly closed by the permitting authority after final inspection and approval.

Unless otherwise defined in these Master Rules, capitalized terms used herein shall have the meanings set forth in the Arora Hills Community Documents.

1. COMMUNITY STANDARDS AND GUIDELINES INCLUDING REQUIREMENTS FOR ADDITIONS AND CHANGES, ACC APPLICATION CHECKLISTS, MINIMUM REPAIR STANDARDS AND DECLARATION RULES ARRANGED ALPHABETICALLY BY SUBJECT.

1.1. ACTIVITIES.

A. This Section 8.1.1 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.1 Activities. No noxious or offensive activity shall be carried out upon any Lot or within any dwelling or any part of the HOA Area, nor shall anything be done thereon which may become a nuisance to the public, or any other member.*

B. Members and their guests are prohibited from using any residential HOA Area for recreational purposes for any activity which involves the use of baseballs, softballs, golf balls, or similar hard balls. Any Member that observes a violation of this restriction must report it to the management office within twenty-fouf (24) hours of the occurrence of the violation, either in writing or electronically, for processing in accordance with in accordance with the Enforcement Procedures set forth in these Master Rules.

1.2. ANIMALS. This Section 8.1.2 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.2. Animals. The maintenance, keeping, boarding or raising of animals, livestock, poultry or reptiles of any kind regardless of number, is prohibited on any Lot, except that the keeping of guide animals and orderly domestic pets (e.g., dogs, cats or caged birds) without the approval of the Board is permitted subject to the Rules and Regulations adopted by the Board; provided, however, that such pets are not kept or maintained for commercial purposes or for breeding; and*

provided, further, that any such pet causing or creating a nuisance or unreasonable disturbance or noise to the neighborhood or other members may be permanently removed from the Property upon ten (10) days written notice from the Board. Any Owner who keeps or maintains any pet upon any portion of the Property shall be deemed to have indemnified and agreed to hold the Association, each Owner and the Declarant harmless from any loss, claim or liability of any kind or character or whatever arising by reason of keeping or maintaining such pet within the Property. All pets shall be attended at all times, and shall be registered, licensed and inoculated as required by law.

1.3. ANTENNAS. (ACC APPLICATION REQUIRED). Antennas are permitted subject to any guidelines established by the Federal Communications Commission.

1.4. BARBEQUE EQUIPMENT. This Section 8.1.3 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.3. Barbeque Equipment. Barbecue equipment, grills, gas grills, and portable patio fireplaces shall be stored out of public view when not in use. Any permanent barbeque grill or outdoor fireplace shall meet all applicable safety codes and be integrated with the design of the patio, deck or landscape and screened from public view. No permanent barbeque grill or outdoor fireplace shall be constructed without written approval of the ACC.

1.5. BASKETBALL GOAL SYSTEMS. (ACC APPLICATION REQUIRED).
A goal may installed only on a permanent pole next to a driveway that is fifteen (15) or longer (measured from the end of the sidewalk (if in front of the house) or the end of the curb (if in the back of the house) and provided the backboard faces the driveway.

A. Portable basketball goals are permitted to be placed on the Lots but may not be stored in public view overnight. Sandbags or other exterior items may not be used to weigh down the portable basketball goals. Basketball playing is not permitted on the roadways or alleyways within the community. No outdoor basketball playing is permitted between the hours of 9 PM and 7:00 AM.

B. Backboards for a basketball goal system shall be clear or "smoke" (tinted gray) acrylic.

C. ACC CHANGE APPLICATION CHECKLIST – WHAT I MUST DO/INCLUDE:

- ☐ Clearly indicate the style of the hoop by submitting a photograph, sketch or catalog photo.
- ☐ Clearly indicate the dimensions/size of the installation and length of the driveway.
- ☐ Clearly indicate the location of the pole and backboard on the survey and show the direction the hoop is facing.
- ☐ Clearly indicate the materials and color/finish of backboard and pole.

1.6. BOATS, AUTOMOBILES, COMMERCIAL VEHICLES, TRUCKS AND OTHER VEHICLES.

This Section 8.1.4 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.4. Boats, Automobiles, Commercial Vehicles, Trucks and Other Vehicles. Except in connection with temporary construction activities, no boats or cradles, trailers, campers, mobile homes, recreational vehicles or trucks with over one (1) ton gross cargo capacity, commercial vehicles, or unlicenced,[sic] abandoned, inoperable, or junked vehicles or any vehicle with ladder/equipment racks and/or advertising (individually and collectively "Vehicles") may be regularly parked in streets, driveways, yards, or parking areas and in no event for more than twenty-four (24) hours, nor shall extraordinary repair or maintenance of Vehicles be performed in said areas. The Association may designate, but is not required to do so, a specific area for such parking and/or repairs of such Vehicles.

A. Parking Regulations:

(1). Public Roads. Vehicles parked on public roads in Arora Hills HOA are subject to Montgomery County Parking Laws including:

Montgomery County Code	-	*Enforcement Wording*
31-12		*No Parking Anytime in violation of Official sign.*
31-14		*Parking of commercial vehicle/recreational vehicle in a residential area in violation of the law.*
31-17		*No Parking within 35 feet of an intersection/intersection roadway.*
31-18		*No Parking within 5 feet of a driveway.*
31-20b1		*No Parking within 15 feet of a fire hydrant.*
31-20b10		*No Parking opposite to the flow of traffic (left wheels to the curb).*

These laws are enforceable by Montgomery County Police via call to 911, 311 or police non-emergency number 301-279-8000.

(2) HOA private access roads, alley roadways and parking lots: Vehicles using any private access roads, alley roadways and parking lots are subject to the regulations in Section 8.1.4. from the Arora Hills HOA Declaration and to the following:

(a) Commercial Vehicle shall include: any vehicle with visible commercial lettering, vehicles with ladder racks, and vehicles with snow plows. Parking commercial vehicles is prohibited.

(b) Storage of vehicles in parking lots is prohibited. Storage shall mean use of one parking space for fourteen (14) days or more. To avoid enforcement of this rule, vehicles should be licensed, operational and moved at least every fourteen (14) days. Note: moving the vehicle shall include changing parking spaces.

(3) Moving Storage PODS (storage box without wheels for transportation) and roll-off dumpsters are permitted in driveways for up to two weeks without written authorization for a longer period. Moving Storage PODS are permitted in HOA private parking lots i.e. Meadow Mist Road, Spicebush Drive and Sweet Shrub Circle with prior notice and approval and subject to limitations on permitted space for temporary storage.

Enforcement: In addition to any other enforcement procedures in the Master Rules, violation of parking regulations herein and as designated by signage including No Parking Fire Lane, No Parking For Snow Emergencies, no double parking, no blocking alley access, no parking on common area grounds, lawns or sidewalks, blocking trash enclosures, handicapped parking may be enforced by towing in accordance with Montgomery County and State of Maryland towing regulations.

1.7. CANOPIES. Permanent canopies are not permitted. Set up of a temporary canopy on an Owner's Lot for up to seven (7) days is permitted.

1.8. CARPETING/SYNTHETIC GRASS. Indoor/outdoor carpeting and synthetic grass on any exterior surfaces (for example, front stoops, decks, patios, etc.) **are prohibited**.

1.9. CLOTHESLINES. This Section 8.1.5 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.5 Clothes Lines. No clothing or any other household laundry shall be hung in the open to dry on any Lot unless hung from a device that is removed from view when not actually in use. Permanent clothes lines are prohibited.

1.10. CONSTRUCTION ACTIVITIES. This Section 8.3 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.3 Construction Activities. This Section shall not be construed as forbidding any work involved in the construction or upkeep of any portion of the Property so long as such work is undertaken and carried out (i) with the minimum practical disturbance to Persons occupying other portions of the Property or to existing trees and/or shrubbery; (ii) in such a way as does not violate the rights of any Person under any provisions of this Declaration; and (iii) in accordance with all applicable restrictions in the Rules and Regulations, the Resolutions of the Board of Directors and the other provisions of this Declaration. The Board of Directors may approve temporary structures for construction purposes which may otherwise be in violation of the Association Documents or the Rules and Regulations.

1.11. DAY CARE AND NO-IMPACT HOME BASED BUSINESS. This Section 8.8 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration. For current 2017-2018 Day Care licensed daycare operators, copies of the Maryland Home Day Care license and proof of liability insurance are due on or before July 1, 2017. For all new operators, copies of the license shall be due prior to establishing and operating the Home.

DECLARATION: 8.8 Family Day Care and No-impact Home Based Business. Notwithstanding anything contained herein to the contrary, any Owner may use his or her residence as a Family Day Care Home ("Home") or for a no-impact home based business ("Home Business") (as defined in Section 11B-111.1 of the Real Property Article, of the Annotated Code of Maryland (1999) as amended from time to time, and Title 5, Subtitle 5 of the Family Law Article of the Annotated Code of Maryland (1999), as amended from time to time, the "Family Law Article") subject to the following requirements:

8.8.1 The Owner or Day Care Provider (as defined in the aforementioned provisions of the Annotated Code of Maryland) operating the Home shall be registered with and have a license issued by the Department of Human Resources, in accordance with the registration and licensing provisions set forth in the Family Law Article. The Owner shall provide a copy of the license to the Board of Directors prior to establishing and operating the Home and upon each renewal thereof.

8.8.2 The Owner or Day Care Provider shall obtain the liability insurance described in under §§19-106 and 19-202 of the Insurance Article of the Annotated Code of Maryland (2002) as amended from time to time, (the "Insurance Article"), in at least the minimum amount described in that Section. The Owner or Day Care Provider may not operate the Home without the liability insurance described herein, and shall present proof of insurance to the Board of Directors before establishing and operating the Home and upon any renewal of the policy. The Association may not require the Owner or Day Care Provider to obtain insurance in an amount greater than the minimum amounts set forth in the Insurance Article set forth above.

8.8.3 The Owner or Day Care Provider shall pay, on a pro-rata basis with other Homes then in operation, any increase in the Association insurance costs attributable solely to the establishment and operation of the Home, upon presentation of a statement from the Board setting forth the increased costs and requesting payment of same. The increased insurance costs shall be considered an Assessment against the Lot, and may be collected in the same manner as collection of Annual and Special Assessments, as set forth in Article N of this Declaration.

8.8.4 The Owner or Day Care Provider shall be responsible for payment of a fee (the "Day Care Fee") determined by the Board of Directors, for the Home's entitlement to use of the HOA Area. The Board shall establish the Day Care Fee and shall advise all Owners or Day Care Providers operating Homes of the amount due on an annual basis. The Day Care Fee shall not be in an

amount in excess of Fifty and 00/100ths ($50.00) Dollars. Upon presentation of a statement for the annual Day Care Fee and demand for payment, the Owner or Day Care Provider shall promptly remit payment the Board of Directors. The Day Care Fee shall be considered an Assessment against the Lot, and may be collected in the same manner as collection of Annual and Special Assessments, as set forth in Article V of the Declaration.

8.8.5 The Board of Directors may regulate the number of Homes operating within the Association, provided that the number permitted may not be less than 7.5 percent of the total Lots within the Association.

8.8.6 Home Businesses may not use, or operate in, any HOA Area.

1.12. DECKS/SCREENED PORCHES. (ACC APPLICATION REQUIRED). All decks or screened porches must be approved by the ACC. "Decks" and "screened porches" are hereafter referred to as simply "decks" or "deck". Homeowners are advised to consider the following:

Elevated and ground level decks are an extension of the house which can impact its exterior appearance and may affect the privacy of adjoining homes. Drawings submitted with the application do not need to be professionally done, but they must be to scale and show dimensions. Refer to the checklist for other information to be submitted with an application for a deck.

All appropriate measures shall be taken to prevent damage to individual lot and multi-lot drainage systems. Any adverse drainage requirements, which might result from the construction of a deck, should be considered and remedied. By example, a deck footer may not be placed in a private storm drainage easement area nor in or near below grade drainage pipes. Approval will be denied if the Board of Directors or the ACC believes that adjoining properties are adversely affected by changes in drainage. The use of a partially porous surface, or the installations of mulch beds adjacent to a deck, are ways to offset drainage concerns. The following factors will be considered in the review of applications:

A. Location. Decks and patios should generally be located in rear yards. Side yard locations may be evaluated on their individual merit. Decks are prohibited at frontages. The privacy of adjacent homes, aesthetics, visibility and other positive/negative features will be considerations in evaluating the location. Decks must be located within lot lines. No deck may intrude in any manner into Community Property. Decks cannot be built in non-construction easements. No Deck may exceed fifty (50) percent of the total usable area available in the rear of the property. (Available area does not include the driveway or stairs to a basement level.)

B. Scale and Style. Decks and patios, particularly elevated decks, should be of a scale which is compatible with the home to which attached, adjacent homes and the environmental surroundings. Due to the small size of the rear yards some townhomes may not be acceptable for decks. When there is a deck less than eight feet (8') in height from the ground, white lattice either in painted wood or vinyl is required. The lattice must be applied so all exposed areas under the deck are hidden.

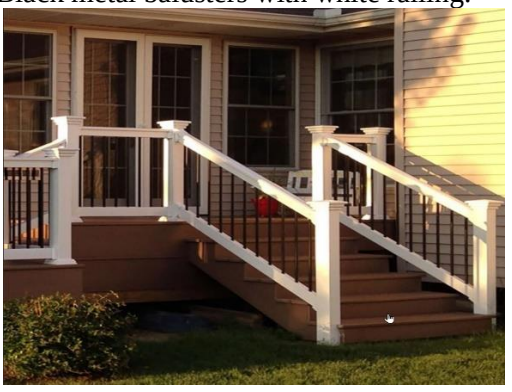
C. Materials. Decks and stairs shall be cedar or high quality (No. 2 southern yellow pine or better) pressure-treated wood. Composite wood ("Trex" or equal) may be used for walking surfaces. Rails may be vinyl or pressure treated wood stained white. Balusters may be vinyl or pressure treated wood or metal. Metal balusters can only be round shape and thickness should be one inch (1") or less.

D. Color. All rails, handrails, caps etc. and all vertical surfaces from and above the deck level shall be painted or stained white. Handrails can be white or matching the floor (deck) color). Metal balusters can be painted black as well.

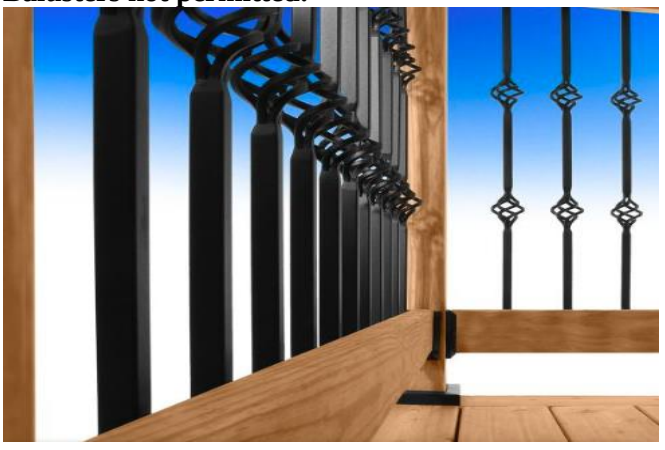
Permitted Metal Balusters:

Black metal balusters and handrail with the color of the deck.

Black metal balusters with white railing.



Balusters not permitted:



E. Stairs.: should not be placed so they provide direct access to the deck from the front of the home. Stairs are not to be visible from the front view of property or street.

F. Landscaping. Landscaping around decks, patios, and screened porches is strongly encouraged to soften corners and views from adjacent lots and to offset drainage concerns. Landscaping shall follow the rules set forth in this document and shall be submitted as part of the deck application.

G. Privacy Screens/Walls. Privacy screens or walls appended to decks on or above ground require an application to the Architectural Control Committee.

H. Installation. The installation of decks shall be performed in a professional manner. This requirement is not intended to supersede the regulations set forth by the Montgomery County building department and the State of Maryland. However, the installed deck shall be aesthetically pleasing for the life of the material. All installed material shall be in accordance with manufactures recommendations for structural integrity.

I. ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Application must be completed with written description of the project i.e. sample description "12x14 deck, trex material, pvc railings, all white, with steps".
- ☐ Copy of survey showing location of proposed deck.
- ☐ Scaled drawing showing plan (overhead view), elevations, side elevation showing height by the number of feet between the ground and the bottom of the deck, and dimensions including length, width and height, location of steps if any.

- ☐ Materials of the deck flooring, railings and caps, steps, and colors for each.
- ☐ Detail sketch(es) of railing design(s) and built-in benches, if any.
- ☐ Color/finish for flooring, railings and caps, steps and any other details.
- ☐ Indicate on the survey the location of any private drainage easement impacting your lot and explain how will/will not impact that easement.
- ☐ If deck is eight feet (8') and less in height from the ground, white lattice is required.

J. DECKS - MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Missing, broken sections.
- Wood needing painting.
- Rotten wood.

1.13. DECORATIVE OBJECTS. (ACC APPLICATION REQUIRED). Approval will be required for all exterior decorative objects, whether natural or man-made, which were not part of the original construction design, either as a standard or optional feature. Examples include but are not limited to: bird houses, bird baths, driftwood, weather vanes, sculptures, fountains, free standing poles of all types, house address numerals, any items attached/unattached to approved structures and lighting. See Section 1.25. Holiday Decorations which are temporary and permitted subject to guidelines.

These will be evaluated in terms of their general appropriateness, size, location, compatibility with architectural and environmental design qualities and visual impact on the neighborhood and the surrounding area. Sculpture, garden statues, bird baths, bird houses and similar items are restricted to rear yard locations and should not be visible from the front yard or a street.

1.14. DRAINAGE/PRIVATE STORM DRAINAGE EASEMENT AND SYSTEMS.

This Section 8.7 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.7 Limitation of Use of Easement Areas. In those strips of parcels of land designated on the Subdivision Plat as "easement" areas or otherwise designated as easement areas elsewhere in this Declaration or otherwise, no structure shall be placed or permitted to remain which may damage or interfere with the installation and maintenance of utilities or which may change the directional flow of drainage channels or obstruct or retard the flow of water through drainage channels. The reserved easement areas of each Lot and all improvements thereon (except improvements, installations or maintenance for which a public authority or utility company is responsible) shall be maintained by the Owner of the Lot. USE OF AREAS, IF ANY, DESIGNATED AS CONSERVATION AREAS MAY BE SUBJECT TO CONSERVATION EASEMENT AGREEMENTS RECORDED AMONG THE LAND RECORDS OF MONTGOMERY COUNTY, MARYLAND.*

A. Private Storm Drainage Easements. Many Lots in Arora Hills are subject to private storm drainage systems referenced in Easements recorded in Montgomery County Land Records and which may be referenced on Lot Owners Title Insurance Policies. Some drainage systems are surface i.e. those marked on surveys for Lots and/or community plats such as townhouses with detached garages where runoff must flow side to side making higher elevated Lots dependent upon lower elevated Lots for drainage. Some drainage systems are in-ground via surface drains in the yards and piping connected to downspouts. The in-ground systems are connected to private drainage pipes running on HOA property which are connected to county maintained storm water management systems.

(1) Maintenance. As these private storm drainage systems must be maintained, in addition to the responsibility of the Lot owner to keep the drainage system clear, to use for storm water runoff only and to report any repair, blockage or flooding concerns to the HOA, the following access provisions shall apply:

(2) The Association and their respective agents and employees shall have a right to enter any Lots with a private drainage easement system after reasonable notice except in case of emergency during which entry may be made without notice. Entry shall be permitted for the purpose of inspecting, maintaining, repairing, or replacing any portion of the private storm drainage systems located within a Lot.

(3) Owners may not change, remove or otherwise alter any such private storm drains or erect permanent structures over the private storm drains. Owners shall keep private storm drains located on their Lot free from debris. Owners are notified that any landscaping that may be planted on, over or near any such private storm drains shall be subject to being removed and replanted in the event the Association shall require access to the private storm drains for the purposes noted in this paragraph. The Association shall not be liable or responsible for any damage caused to such landscaping or to any improvements that the Owners construct on, over or near the private storm drains. Any change or modification to a lot that may impact a private storm drainage easement must be identified in the ACC Application, must include the lot survey showing the location of the easement, a copy of the easement plat, and information and explanation of same for ACC Consideration. Final approval, if any, will be conditioned upon receipt of a signed Arora Hills HOA Private Easement Waiver Form. Any construction adversely impacting a private drainage easement or roof drainage easement may necessitate removal and restoration at the owner's risk and expense.

(4) Owners shall notify the Association if they notice any damage to the storm drain systems that will require repair.

1.15. DRIVEWAY EXPANSION, ACCESS ROAD EXPANSION, ALLEY ROADWAY EXPANSION (ACC APPLICATION REQUIRED).

As a result of the limitations of original roadway, lot and alley configurations, there are numerous locations in the community where private vehicles, trash removal trucks, delivery trucks and contractor vehicle damage lawn and grass areas. In an effort to create options for repairs other than repairs to the lawn/grass, the following changes may be submitted for ACC review provided that for any concrete project the following conditions apply: Installation must be by a licensed and insured contractor experienced in the installation of concrete, installation shall be of the depth, compaction and strength for the use intended. Application must include (a) a photograph showing the proposed location, (b) a description and drawing of the proposed size of the expansion, (c) the expansion area located/drawn on your survey, (d) any special consideration for drainage from nearby downspouts, (e) installers confirmation that existing slope for drainage will be maintained, and (e) a copy of the concrete installation contract.

A. Driveway Expansion:

(1) Attached garage in front of lot: As a general rule, lots with an attached garage in front of the lot are of adequate width and length and include concrete driveway aprons and will, therefore, not be considered for driveway expansions.

(2) Garage in rear of lot:

(i) Detached garage in rear of lot: Driveway expansions are permitted up to a maximum of four feet (4') wide by three feet (3') deep, in concrete only and to be installed in straight lines except that the line abutting the existing driveway shall meet and connect with that line. The width and depth permitted may be less than the maximum to meet aesthetics of proportionality of the area available for expansion to the size of existing driveway.

(ii) Attached garage in rear of lot: Consideration will be given to driveway expansions in the rear of lots with single car width driveways. A joint application with the neighboring property is required. Driveway expansions are permitted three feet (3') deep for the full width between adjacent driveways, in concrete only and to be installed in straight lines except that the line abutting the existing driveway shall meet and connect with that line. The width and depth permitted may be less than the maximum to meet aesthetics of proportionality of the area available for expansion to the size of existing driveway. Expansion or isolation joints should be used between new driveway expansion, existing driveways and alleyway. Contraction joints should be placed to produce panels that are as square as possible and never exceeding a length to width ratio of one and one-half (1.5) to one (1).

B. Access Road – Adjacent Lot Changes. Installation of a raised concrete curb on the owner's property and adjacent to the asphalt access road permitted up to four linear feet in length in a curve to match the access road curve. Application must also include a description and drawing of the proposed raised curb addition.

C. Alleyway Lot Repair. Permitted on curved sections of the roadway to be installed in one of the following options:

(1) With written authorization/permission from the HOA to remove the HOA curb and to replace the HOA header curb in a new pour with the addition of a new expanded curb of (i) the HOA flat header curb and (ii) new rolled curb with a minimum of eight inches (8") below grade and six inches (6") above grade. This is the preferred installation for longevity and strength. The maximum linear feet shall be reviewed by the ACC Committee on a case-by-case basis.

(2) With written authorization/permission from the HOA to install rebar into the existing HOA header curb to attach to new rolled curb with a minimum of eight inches (8") below grade and six inches (6") above grade.

Any such alleyway lot repair and addition of rolled concrete curb, as it impacts HOA property, shall be inspected after installation to confirm that the installation has not resulted in damage to HOA property or appearance. Any such alteration shall be maintained by the lot owner excluding normal wear and tear on the HOA property.

D. ACC APPLICATION CHANGES CHECKLIST. WHAT I MUST DO/INCLUDE – refer to list in introducton.

E. Prohibited: No other materials will be permitted to address vehicle damage on lawns i.e. no boulders, rocks, hard scape pavers, wood or other barrier materials.

1.16. DOG HOUSES AND DOG RUNS ARE PROHIBITED.

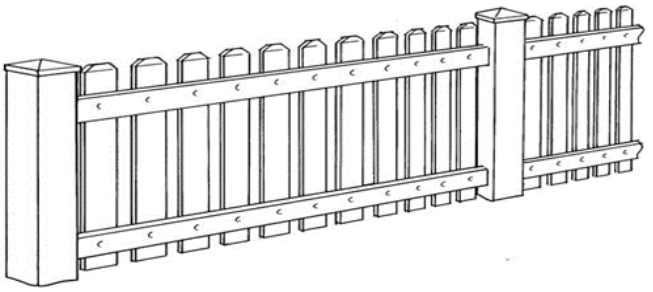
1.17. FENCING SYSTEMS. (ACC APPLICATION REQUIRED). A new fence shall share the corner post of the fencing of the adjoining neighbor.

A. Perimeter Fencing**:**

Perimeter fencing can either be Hannibal or split rail in style. Either fence must be wood painted white or constructed of white PVC. Split rail styles may not have any additional fencing applied, such as chain link or chicken wire. **Sample diagram of Hannibal style is provided below**. Unless the Hannibal style fence matches exactly the fence shown in the photo and the specifications, variations must be specified in the ACC Application and approved i.e. different picket style or post cap. Perimeter fencing is permitted on the end side of corner townhouse lots. Perimeter fencing is not permitted across the front of townhouse lots, whether fronting to and facing common area or public streets, except and unless the entire row installs perimeter fencing to establish a linear and uniform lot appearance.

B. Gates**:** Gates may be installed on perimeter fencing and cannot be more than four (4) feet in width and must match the fence style.

1.17. FENCING. Hannibal design, dimensions and sample:



Standard Height Options:	48"
Post Spacing Options:	6' or 8' center-to-center (Notice - Posts must be exactly centered to allow for expansion.)
Post Dimensions:	48" High Fence = 4" x 4" x 48"
Standard Post Depth: (Local conditions may require additional depth.)	48" High Fence = 24" Post Depth
Horizontal Dimensions:	3” to 4” wide, 1 ¾” to 2” thick
Pickets (Verticals) Dimensions:	3" Wide x 7/8" Thick
Picket (Verticals) Spacing:	1 3/4" to 3”
Ground Clearance: (Grade variations will cause inconsistent ground clearance measurements.)	2"

C. Privacy Fencing**:**

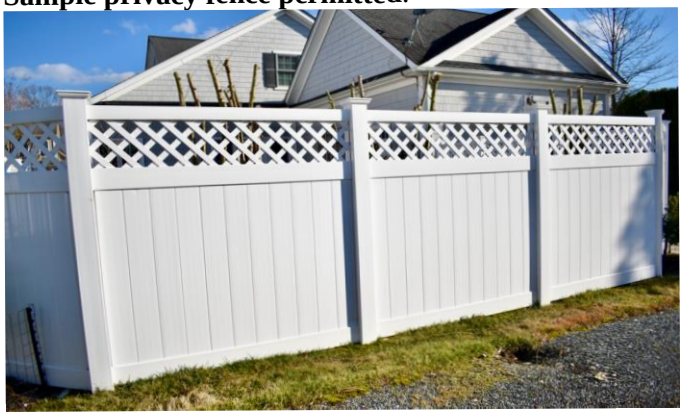
(1) Privacy Fence can only be placed in the rear yard. Corner lot owners may install a privacy fence provided owner secures and provides a fence permit from Montgomery County for the fence before construction starts. ACC approval will be conditional until a copy of the fence permit is provided to the ACC to complete the application process.

(2) Privacy fencing shall be 5 feet high with 1 foot of lattice on top, for a total fence height of six feet (6’).

(3) Five foot (5’) total height fencing (with or without lattice) shall not be approved.

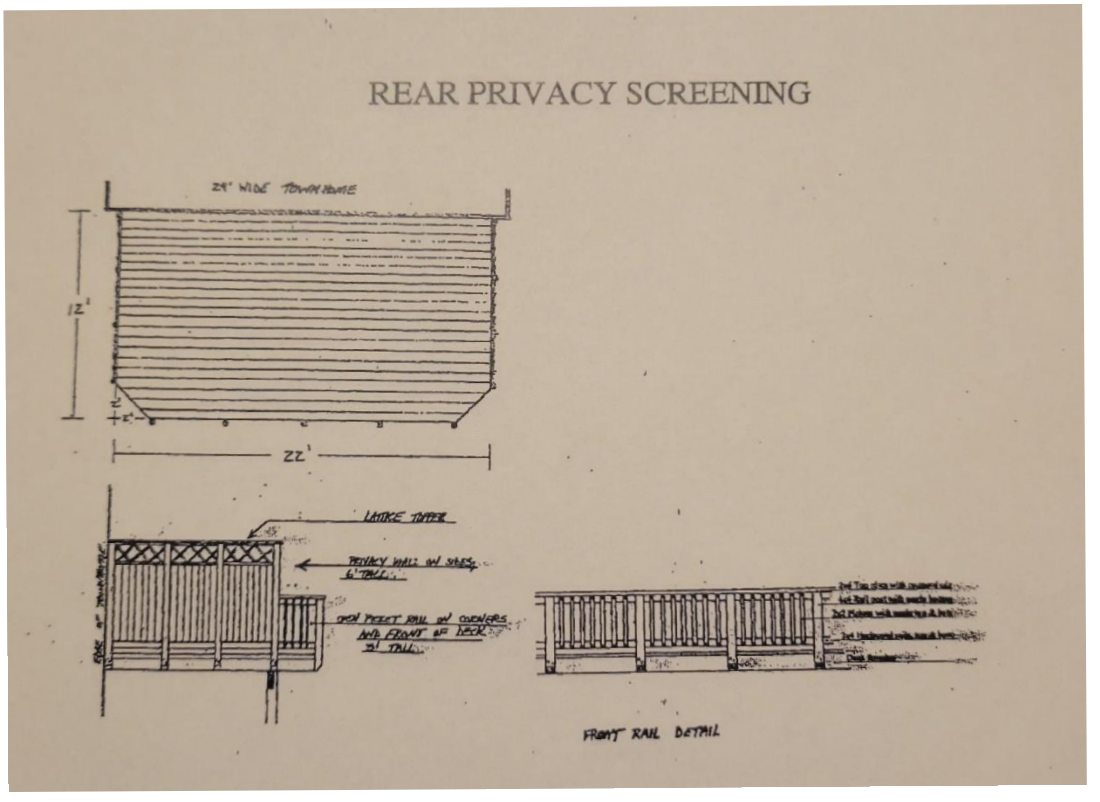
(4) Six foot (6’) total height fencing without lattice shall not be approved.

Sample privacy fence permitted.



Sample privacy fence not permitted:

D. Privacy Screening. For town homes, privacy screening must be twenty-four feet (24’) wide and twelve feet (12) high.



E. FENCING ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey clearly showing the location, dimensions/size of fence and location and size of gate(s) with each clearly labelled.
- ☐ Sketch, photograph, or brochure clearly indicating the fence design including style selected i.e. privacy or picket, size and numbers of gate(s), if applicable, height of fence in total, height of lattice and height of closed section, style/size and color of caps and posts, width of pickets and space between pickets for picket style fence.
- ☐ Clearly indicate the fencing materials and color/finish of the fence.

F. FENCE MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Broken or falling down sections.
- Missing sections.
- Un-painted sections.
- Posts missing or rotted.
- Chipped, chipping paint, mildewed or discolored.
- Needing paint.
- A new, unpainted fence shall be painted within 6 months of installation.

1.18. Fire Pits/Fire Bowls. (ACC APPLICATION REQUIRED). The Use of Fire Pits, Fire Bowls, Chimineas, and other similar appliances have become popular in our community. Per Montgomery County and Maryland Fire codes, here are guidance recommendations for Fire Pits and Fire Bowls:

A. There must be one person at least 18 years of age to assume responsibility for the use of these appliances.

B. Use of Fire Pits, Fire Bowls, Chimineas and similar portable devices must be at least fifteen feet (15') away from any building or structure. Keep a clear area (clear meaning free of anything that can burn) of at least three feet (3') in diameter around the appliance. Please remember that mulch can burn so keep your appliance at least three feet (3') away from mulch as well.

C. Do not use or store Fire Pits, Fire Bowls, Chimineas or similar devices on a balcony or deck.

D. Burn only aged dried wood. The burning of any type of construction material or trash is prohibited.

E. Do not use any type of flammable or combustible liquid at any time.

F. Have a garden hose connected to a constant water source available close by.

G. Smoke is not allowed to cross property lines. Be mindful of the wind speed prior to starting this type of fire.

H. Do not use on Code Orange or Code Red Air Quality days.

I. Dispose of all ashes in a safe manner. After twenty-four (24) hours has passed, all left over hot ashes must be thoroughly dampened, cooled and stored in a metal can that is used solely for ash storage. Ashes that are two (2) or three (3) days old may appear to be safe, but can still retain enough heat to cause an unwanted fire. Do not discard hot ashes in a compost pile, paper bag cardboard box or anything that is combustible.

1.19. FIREWOOD. Firewood stored on a lot shall be kept neatly stacked and shall be located to the rear of the residence and in such a manner as to avoid adverse visual impact for adjoining properties. Screening may be required in certain cases.

Firewood should be stacked in piles which do not exceed eight feet (8') in length and four feet (4') in height for both aesthetic and safety considerations.

Other than a limited quantity of firewood intended for immediate use, firewood shall not be stacked on patios or decks.

1.20. FLAGPOLES. Permanent, free standing flagpoles are prohibited. Temporary flagpole staffs which do not exceed six feet (6') in length and are attached at an incline to the wall or pillar of the dwelling unit do not require approval by the Architectural Control Committee.

This Section 8.1.8 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.8 Flagpoles. Flagpoles are not permitted on residential Lots without written approval of the ACC. Up to two (2) flags at a time may be displayed on flag staffs attached to a residence. Proper flag etiquette must be observed.*

1.21. GAZEBO. (ACC APPLICATION REQUIRED). The architectural design of the gazebo should be compatible with the design of the home and shall comply with the following:

A. Size. Gazebos should not exceed one hundred forty-four (144) square feet of floor space. The height at the highest point shall be in proportion to the lot size, house size and available space for placement.

B. Materials. The finish materials must be identical to those for the home.

C. Colors. The color scheme must be the same as for the home or may be white.

D. Roof. The roof slope and the type and color of roofing material should match the house.

E. Footers. Gazebos must be secured by appropriate footers and capable of meeting county guidelines on wind speeds.

F. Location. The gazebo shall be located behind the house and houseline-extending to the property line. Consideration should be made of impact on view of open space i.e. Gazebo should not unreasonable obstruct view of properties to open space.

G. Integrate with landscape design. Gazebos placed on the ground (not a deck) should be integrated into the rear property landscape design.

H. ACC CHANGE APPLICATION CHECKLIST FOR GAZEBO. WHAT I MUST DO/INCLUDE.

- ☐ Size (sides, square footage, height), location must be drawn on the survey.
- ☐ Materials.
- ☐ Colors.
- ☐ Roof.
- ☐ Footers.
- ☐ Landscape plan.

I. GAZEBO MAINTENANCE STANDARDS. WHAT I MUST FIX.

- rotted and deteriorated wood
- unsightly and unsafe
- in need of paint

- mold and mildew
- structural defects visible to eye
- missing sections or insecure fastening

1.22. GENERATORS. (ACC APPLICATION REQUIRED). Backup generators have been approved for installation in Arora Hills. Backup generators shall be reviewed in a similar fashion to that of the relocation of an AC unit. Location on property, proximity to plot boundaries, and possible impact to adjoining properties shall be considered. Backup generators shall (a) be appropriately sized relative to the size of the home and (b) be screened from public view

1.23. GREENHOUSES. (ACC APPLICATION REQUIRED). A greenhouse will be treated as a major alteration to a dwelling unit and subject to the same level of review. Only greenhouses which are attached to the dwelling unit are permitted. Greenhouses must meet the following additional criteria to be approved:

A. The scale and design must be architecturally compatible with the home and surrounding homes.

B. There shall be no adverse visual impacts for adjoining properties. The installation of landscape materials to provide a visual screen is encouraged and may be required as a condition of approval.

1.24. HAZARDOUS MATERIALS. This Section 8.1.9 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.9 Hazardous Materials. No hazardous material (except those that are ordinarily found and/or used in dwellings for acceptable purposes) shall be used or stored on any Lot. This shall include the following: (1) any "hazardous waste" as defined by the Resource Conservation and Recovery Act of 1976, as amended from time to time, and regulations promulgated thereunder; (2) any "hazardous substance" as defined by the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended from time to time, and regulations promulgated hereunder; (3) any substance the presence of which on the Property is prohibited by any Federal, State, County or local law or ordinance regulating toxic or hazardous wastes or substances; (4) any toxic or hazardous substances or materials, whether Products or wastes, including, without limitation, asbestos or PCB's; and (5) "oil, petroleum Products and their by-Products", as defined by any Federal, State, County or local law, ordinance, regulation or requirement applicable to the Lot, or any portion thereof, as amended from time to time (e.g., Maryland Natural Resources Code Ann. Section 8-1411[a] [3], as amended). (All of the foregoing collectively are referred to herein as "Hazardous Materials.")*

1.25. HOLIDAY DECORATIONS. Temporary holiday decorations must be removed within thirty (30) days of the holiday date or end date. Holiday decorations that remain thirty (30) days or longer are a violation of Section 1.13 Decorative Objects. Any decoration that remains thirty (30) days or longer must have ACC approval.

1.26. HOT TUBS/SPAS. (ACC APPLICATION REQUIRED). Exterior hot tubs or spas must be located either on the deck or on the ground level of the rear yard adjacent to the dwelling unit and must receive ACC approval. The incorporation of hot tubs as a design feature of a deck or patio is encouraged. The exterior finish of an elevated hot tub or spa should blend with the exterior finish of the home, deck or patio to which attached or most closely related.

There shall be no adverse visual impacts for adjoining properties. The tub or spa must be screened appropriately with either evergreens or privacy fencing or both depending on-location. Soft muted colors that blend with the natural surrounds are suggested.

Tubs or spas recessed into decks are preferred over free-standing hot tubs. If free-standing, the tub/spa must be enclosed on all sides with natural wood. Visibility and location will be considered along with the impact on adjacent properties for all approvals.

1.27. HOUSE AND GARAGE – EXTERIOR CHANGES AND MAINTENANCE.

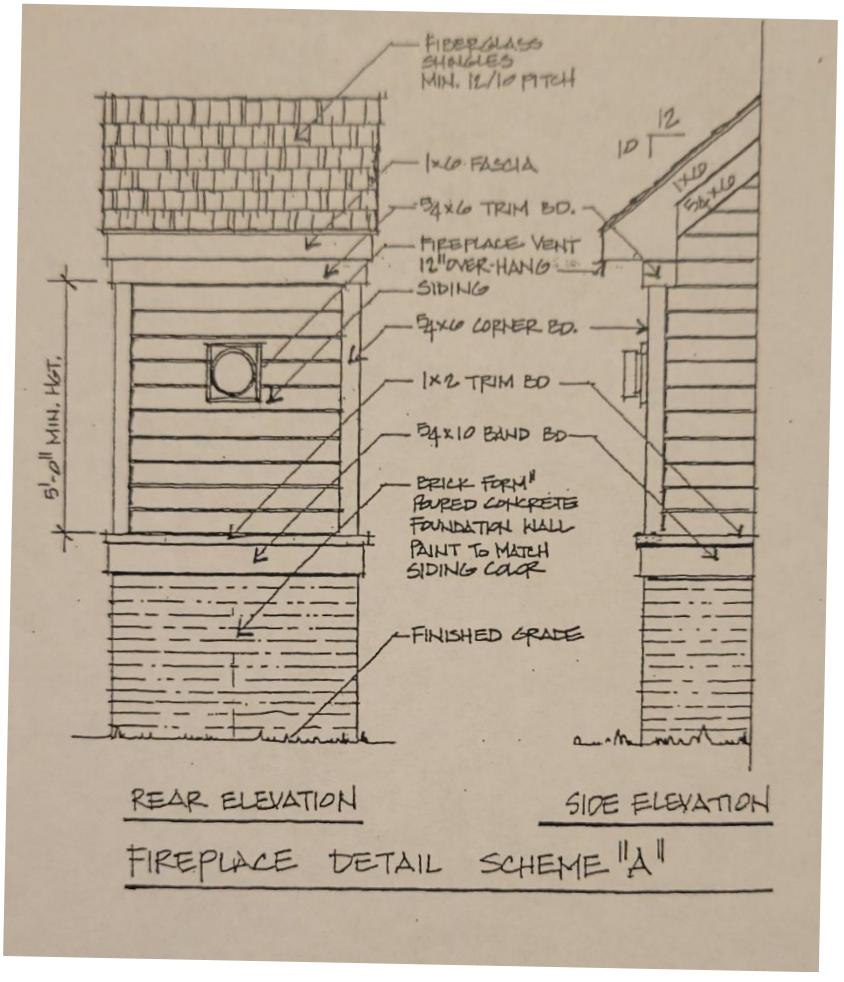
A. Air Conditioning Units**.** The ACC Committee will not approve applications for installation of window or wall air conditioning units (or fans of any type). Relocating exterior central air conditioning units will be considered. When installing or relocating an air conditioning unit, please take into account any adverse visual impact on adjoining properties. Application and approval are not required to replace an air conditioning unit in its original location.

B. Attic Ventilators. (ACC APPLICATION REQUIRED). Attic ventilators and turbines should be mounted on the least visible side of the ridge line so as to minimize their visibility.

(1) ATTIC VENTS – MAINTENANCE STANDARDS – WHAT I MUST FIX.

- Vent is rusted OR in need of paint.
- Vent was removed and replaced with unapproved material – I will have to secure ACC approval of change or correct to approved materials.

C. Chimneys/Metal Flues. (ACC APPLICATION REQUIRED**).** Chimneys for fireplaces installed on the exterior of homes must match both the design and materials of original chimneys on similar houses in the Community. With the exception of the short side exiting exhaust flues used for gas fireplaces (which do not extend past the roofline), all chimneys must be brick or stone, and the brick or stone must match the house brick or stone (if any). No exposed metal



flues (chimney stacks) will be allowed on the exterior walls of any homes. Flues will be considered on the upper two-thirds (2/3rds) of rear roofs.

(1) CHIMNEY ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey showing location of chimney.
- ☐ Scaled drawing showing front and side elevations, and dimensions including length, width and height.
- ☐ Materials, color/finish.

D. Doors. (ACC APPLICATION REQUIRED) Any replacement door which does not match existing must be approved by the ACC Committee. (see separate entry for storm doors).

(1) MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Broken or missing panes of glass.
- Torn screens.
- Screens hanging off.
- Loose or not firmly attached.
- Hardware: original replaced with non-conforming style.
- Original replaced with different areas of door left unpainted.
- In need of paint or stain.
- Unable to fully close.

(2) DOOR GUARD RAILS (METAL OR WOOD) MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Rotted and deteriorated wood.
- Unsightly and unsafe.
- In need of paint.
- Mold and mildew.
- Removed without approval.
- Structural defects visible to eye.
- Missing sections or insecure fastening.

E. Exterior Lighting. (ACC APPLICATION REQUIRED). Lighting which is part of the original structure may not be altered without prior approval of the Architectural Control Committee. Proposed replacement or additional fixtures must be compatible in style and scale with the applicant's house. LED lighting of similar coverage and intensity is permitted. No exterior lighting shall be directed outside of the applicant's property. Proposed additional lighting shall not be approved if it will result in an adverse visual impact to adjoining neighbors due to location, wattage or other features.

(1) String Lights**.** (ACC APPLICATION REQUIRED). String lights may be permitted as a year-round installation with an ACC Application, ACC review and approval subject to the following requirements:

(a) String lights must be attached to a structure i.e. the house, the garage, pergola, gazebo, or screened in porch, deck railings, and in the rear lot only.

(b) String lights must be secured to the structure with no more than six (6”) inches of wire hanging, unattached, between bulbs.

(c) String lights must be white or clear.

(d) String lights prohibitions:

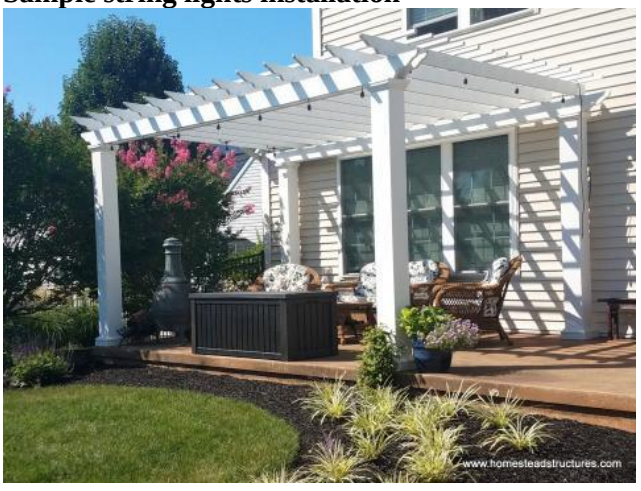
- No use of poles or other supports except those listed above.
- No draping of wires except as listed above.

- No use of non-string lights except as holiday decorations on a temporary basis.
- No use of string lights on the front of the house or sides of the house.

(e) APPLICATION CHECKLIST. WHAT I MUST INCLUDE.

- ☐ ACC Modification form, signed.
- ☐ Copy of house location survey showing the proposed location of the string lights and description of plan for attaching to a structure, list the structure.
- ☐ Description of the materials, color(s), bulb wattage.

Sample string lights installation



(2) EXTERIOR LIGHTING MAINTENANCE. WHAT I MUST FIX.

- Broken, rusted, dented, bent out of shape.
- Broken glass.
- Missing or burned out light bulbs for extended period of time.
- Fixtures themselves in need of paint.

F. Exterior Painting. **(**ACC APPLICATION REQUIRED FOR COLOR CHANGE**).** An application is not required in order to repaint or re-stain an object to match the original color. However, <u>all exterior color changes must be approved.</u> This requirement applies to siding, doors, shutters, trim, roofing and other appurtenant structures.

(1) PAINT COLOR CHANGE. ACC APPLICATION CHECKLIST WHAT I MUST DO/INCLUDE.

- ☐ Provide paint or stain brand and number (include sample of color).
- ☐ Specify areas to be painted and color to be used (a simple drawing of the house
- ☐ showing areas to be painted and color to be used).
- ☐ Designate areas to be painted on the survey.

G. GARAGE MAINTENANCE - WHAT I MUST FIX.

- Siding/trimboards rotted so holes are created.
- Siding/trimboards covered in mold or mildew.
- Siding/trimboards with chipped and peeling paint.
- Siding/trimboards down to bare or exposed wood.
- Deterioration of caulking around windows, doors and baseboards.
- Garage doors in need of paint.
- Garage doors missing panels.
- Garage doors dented and bent out of shape.

H. Garage Door(s**).** For security and aesthetics, garage doors should generally be closed and in no event shall remain open for more than eight (8) hours hours at a time except that a broken or malfunctioning door may be authorized after notification by email or call to the onsite office.

I. Gutters And Downspouts. (ACC APPLICATION REQUIRED EXCEPT FOR LIKE KIND/COLOR/LOCATION REPLACEMENT). All gutters and downspouts, including replacements, must conform in color and design to those installed originally. Any addition of new gutters or downspouts, or a change in location of an original gutter or downspout, requires ACC approval. Gutters and downspouts must not be located in such a manner as to adversely affect drainage onto neighboring properties. Black tubing used for additional drainage purposes must be buried underground and directed away from adjacent properties. Splash blocks must be black or green plastic or unpainted concrete.

J. House Siding And Trimboard. (ACC APPLICATION REQUIRED FOR ANY CHANGE IN APPEARANCE). (see separate entries for doors, roofs, windows, shutters, vents, windows, window boxes, guard rails, steps).

(1) HOUSE MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Siding/trimboard rotted in areas so a hole is created; siding/trimboard covered with mold or mildew; siding/trimboard with chipped and peeling paint; siding/trimboard wood is exposed due to or because of lack of paint; deteriorating caulking around windows, doors and baseboards worn; loose bricks; deteriorating bricks, or missing brick.
- Broken or missing panes of glass.
- Torn screens.
- Trimboards are rotted, paint is chipped or peeling, trimboards are missing.

K. Major Additions/Modifications. (Examples: Room Additions Or Expansions) (ACC APPLICATION REQUIRED).

Architectural Change Applications for major additions or modifications must include detailed information when submitted to the Architectural Review Committee for consideration. Keep in mind that the Committee must have sufficient information to determine what the completed installation or construction will look like and how it relates to its surroundings.

(1) CHECKLIST FOR MAJOR ADDITION/MODIFICATION. WHAT I MUST DO/INCLUDE.

- ☐ Copy of survey showing location of the structure or installation on site.
- ☐ Front and side architectural elevations and plan views with dimensions showing the structure on the home. These must be drawn to scale showing proportions and relationship to existing house. Such architectural plans or blueprints should include (if applicable) checklist items:
- ☐ Length, width, and height measurements throughout.
- ☐ Size of materials to be used as trim.
- ☐ Size of corner boards.
- ☐ Size of cap plates covering wood beams.
- ☐ Size and construction of concrete base.
- ☐ Size of doors and windows, materials used.
- ☐ Size of trim around windows and doors.
- ☐ Measurement of gutter boards, and board & batten.
- ☐ Dimension of roof overhang
- ☐ Dimensions on all exterior materials shown on plans for roof overhangs
- ☐ Finish/color (all trim must be identified and its color specified
- ☐ Roof plans, pitch of roof, materials used and color
- ☐ Step risers and treads
- ☐ Any other information necessary to assist the Committee in making a judgment on the request (photographs could be helpful).

L. Roofs.

(1) Roof Replacement. (ACC APPLICATION REQUIRED FOR COLOR OR STYLE CHANGE). ACC approval is not required for replacing roof shingles with the same color and style. ACC Approval is required if replacing roof shingles with a different color or style.

(2) ROOF MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Shingles missing
- Clawing of asphalt shingles and/or extremely bad deterioration
- Gutters and downspouts not secured to house hanging down or missing
- Gutters must be maintained and painted
- Rusted gutters/downspouts
- Leaves and debris visibly hanging out indicating a blockage
- All downspouts must be maintained and painted
- Downspouts removed without DRC approval
- Chimney flues rusted and paint chipped and peeling
- Skylights rusted, skylights removed and replaced with new material (plywood, plastic, etc.)
- Gravel guards
- Chipped and peeling paint
- Original replaced with unapproved style and material

M. Security Bars**.** In general, the use of security bars or grates on windows and doors will be prohibited. Exceptions may be made where the security apparatus will not be visible from the street and from adjoining properties. Homeowners concerned about the security of their residence are advised to consider alternatives, including alarms and sophisticated lock systems.

N. Shutters. (ACC APPLICATION REQUIRED FOR COLOR/STYLE CHANGE).
Replacement shutters must match color (original) and style. ACC approval is required for changes to color or style or size.

(1) SHUTTERS MAINTENANCE LIST OF REPAIRS. WHAT I MUST FIX.

- Broken or missing slats.
- Hanging or not securely attached.
- In need of paint.
- Original replaced with non-conforming style/size.

O. Skylights**.** (ACC APPLICATION REQUIRED**).** Skylights should be located such that they are not visible from the front of the dwelling unit or a street. Consideration will be given to skylights on the front side of the roof ridgeline only if constructed flush with the roof.

P. Solar Panels**.** See Renewable Energy, Solar.

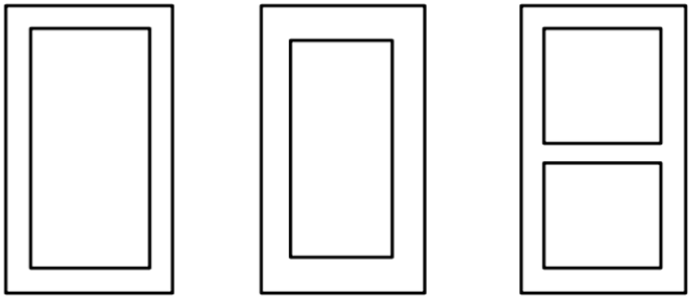
Q. STEPS MAINTENANCE. WHAT I MUST FIX.

- Loose or cracked unsafe.
- Gaps between house base and steps at ground level (created as house settles).
- Improper and excess application of mortar.
- Application of mortar color that does not match existing.

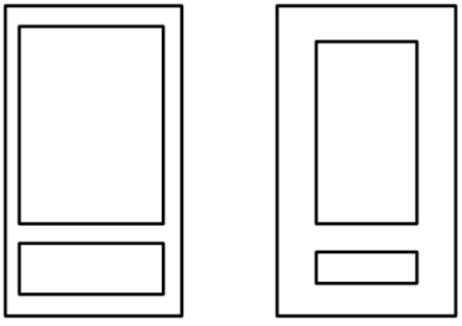
R. Storm/Screen Doors. (ACC APPLICATION REQUIRED UNLESS APPROVED DOOR USED). Only full view storm doors, defined as doors where the glass covers at least eighty (80) percent of the door surface, are permitted. Provided that this criterion is met, there is latitude for a number of door styles. Doors with other decorative treatment, such as grills, are not permitted. Doors must be painted the same color as the unit entry door or the adjacent trim. If a storm door meets the aforementioned requirements an application is not required.

STORM DOOR DETAIL

Five acceptable "full view" style storm doors are illustrated below. Door 1 is the preferred style. Door 2 has a wide border. Door 3 is a style, which can either have removable glass or screen panels, which can have self-storage of glass, or a screen in the lower panel. Door 4 has a kick plate and Door 5 has a wide border and a kick plate.



Door 1 Door 2 Door 3



Door 4 Door 5

S. ACC CHANGE APPLICATION CHECKLIST FOR STORM DOORS. WHAT I MUST DO/INCLUDE.

- ☐ Pre-approved storm doors do not require an application provided they are primed and painted to match the front door or trim color exactly. If the door you have selected is not on the list, then the following information is required.
- ☐ Brochure or catalog photo and description.
- ☐ Color/finish.

T. Windows. (ACC APPLICATION REQUIRED). Architectural Control Committee approval is required to add new windows in walls. Windows must match the existing house windows. The size of the window trim and frame must match that of the other windows as closely as possible. All trim details must be duplicated. The color of the window frame and trim must also match the existing windows. See also REPLACEMENT WINDOWS and WINDOW DIVIDERS.

(1) WINDOW – ACC APPLICATION CHANGE CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey indicating location of new windows.

- ☐ Elevation view of window on house with location, width and height dimensions brochure or catalog photo and description.
- ☐ Color/finish.

(2) WINDOW MAINTENANCE STANDARDS. WHAT I MUST FIX.

- Torn screens.
- Deteriorated window frames.
- Missing mullions.
- Broken or missing panes of glass.

U. Window Dividers**.** Window dividers (mullions) installed in original windows must be retained. The Managing Agent can assist with information on where to obtain replacements for broken or lost dividers.

1.28. LANDSCAPE MAINTENANCE, LAWN MAINTENANCE, LANDSCAPING, VEGETABLE GARDEN, PLANTING BED EXTENSION, LOW IMPACT LANDSCAPING, RAISED GARDEN, HARD SCAPE OR EDGING MATERIALS ETC., USE OF STONES, USE OF COMPOSTING CONTAINER.

A. Maintenance Of Landscaping And Natural Areas**.** All portions of a lot which are not improved by an impervious surface, or a structure must be maintained with a grass lawn (or other vegetation installed by a builder or approved by the Design Review Committee) and the foundation planting beds installed by the builder on the front side of the lot. No bare earth may be exposed on a lot (except for flower beds with appropriate approvals, as required). Foundation planting beds must be maintained with (a) edging or separation to keep the grass from growing into the foundation bed, (b) removal of trash, debris, dead materials i.e., leaves, branches etc., at least once each in spring and in fall, (c) proper and routine removal of weeds, (d) application of mulch (helps inhibit weeds) at least annually. Natural colored, reddish brown, brown and earth colored mulch is permitted provided that only one-color mulch is used throughout the lot. Stones may not be used in the foundation planting bed, tree rings or elsewhere in lieu of or in addition to mulch. Rubber mulch and any other mulch not specifically authorized in this section is not permitted without ACC Committee approval.

B. All Turf Areas On A Lot Must Be Kept Neatly Mowed During The Growing Season. Grass should not be permitted to exceed six (6) inches in height. This includes trimming grass along all lawn edges i.e., planting beds, walkways, driveways, and around all protrusions such as sign poles, fire hydrants, tree beds and permitted hard scape materials as well as all grass in the easement area between the sidewalk and street curb. Trimming grass along sidewalks, driveways and planting beds is called edging and is typically done with an edging tool. Turf areas and other vegetation should be watered during dry periods; any dead plants, shrubs or trees should be immediately removed. Turf areas should be kept as weed free as possible. At no time should weed cover exceed more than twenty-five percent (25%) of the total turfed area. Yards are not areas for the storage of items, and they should be cleaned of litter, debris, and old newspapers on a regular basis.

C. Mowing And Trimming Enforcement For Front Lots (And Side For Corner Lots And End Lots).
Mowing and trimming enforcement for fronts (and sides for corner, end lots). The enforcement process is as follows:

(1) Inspection and notice to correct within fifteen (15) days or the HOA will arrange for mowing/trimming by the HOA's landscaper.

(2) Reinspection and list of addresses with grass of six (6) inches or taller and in need of mowing/trimming sent to HOA's landscaper for mowing on their scheduled maintenance.

(3) Inspection to document mowing/trimming service completed by HOA.

(4) Owner billed for service; fee applied to assessment account. Mowing fee per service:

(a) Townhouse interior lot: $70 (includes mowing and processing fees).

(b) Townhouse corner end lot with side: $95 (includes mowing and processing fees).

(c) Single family lot: $125 (includes mowing and processing fees).

(d) Single family corner lot with side: $150 (includes mowing and processing fees).

Mowing enforcement for violations for rear lots has not changed.

D. Low Impact Landscaping**.** (ACC APPLICATION REQUIRED) Notwithstanding the provisions of Section 1.28 A and B. above, with ACC approval, owners may install low impact landscaping as follows:

(1) Effective October 1, 2021, Real Property Article 2-124 of the Maryland Annotate Code ("Article 2-124"), a homeowner's association may not unreasonably restrict the use of low impact landscaping including bio habitat gardens, pollinator gardens, rain gardens or xeriscape landscaping. Arora Hills HOA, ("Association"), proposes the following guidelines to assist owners who wish to adopt a low impact landscaping method. We believe that it is in the best interest of the Association and our fellow owners to follow these guidelines as closely as possible to preserve both the beauty of our community and the value of our homes. Please be advised that all low impact landscaping, as defined in Article 2-124, ("Low Impact Landscaping") must be approved by the Architectural Control Committee ("ACC") BEFORE beginning any work on the project. ACC (at a meeting) and management are available to answer questions you may have and will work with each homeowner to approve designs that further the underlying concept, while still maintaining the appearance of the neighborhood. These guidelines will be adapted and updated as the owners and Association become more experienced with the process.

(2) About Our Pre-Existing Landscaping Guidelines**.** In the past, the Association has always required full and green turf areas to cover the majority of our front, rear and side yards. Many of the Xeriscaping Guidelines are consistent with our Pre-Existing Landscaping Guidelines (Master Rules). The turf amount requirement is the only *substantial* change required to begin the transition to permit Low Impact Landscaping. As such, the Association intends to manage Low Impact Landscaping applications as a request separate from but not a replacement of our Pre-Existing Landscaping Guidelines.

(3) About Requesting ACC Review of Low Impact Landscaping**.** All Low Impact Landscaping plans must be approved by the ACC **BEFORE** beginning any work on the project. Failure to gain approval in advance of doing work on the project may result in fines being assessed and may necessitate the return of your property to previous condition at your expense. Approval may require more than one month of review (depending upon the extent of the proposed changes), so it is best to begin the approval process two (2) plus months in advance to avoid excessive project delays. The winter months are the best time to plan these changes and improvements (which is also true in standard landscaping). The Low Impact Landscaping request should be submitted using our ACC Application form, which can be found on our website at https://www.arorahillshoa.com/page/38870~824411/architectural-change-application for downloading. You may email, mail, or drop in the lock box at Arora Hills 23030 Birch Mead Road, Clarksburg, Maryland 20871. Applications for the month are due on the first Wednesday for review on the second Monday of each month.

(4) You MUST Include the Following in Your Request for Low Impact Landscaping:

(a) Outline Plan. An overall written outline of your project (a synopsis of what you intend to do). This should draw special attention to any **major** changes that you plan to make (structural, drainage, etc.), and should reference the size and type of any trees and/or shrubs that you wish to remove.

(b) Photo/drawing of Existing. A drawing or photo(s) of your existing landscaping, with details about the size and type of your existing plants. Include any structural elements already on site (retaining walls, large rocks, etc.). Use an "X" or some other method to indicate in your existing drawing or picture which plants (of any) you plant to remove.

(c) Design Drawing. A drawing of your Low Impact Landscaping plan, clearly showing the existing plants you intend to keep as well as which plants will be added. The more details here the better. Though we know it will be subject to availability at the time of the installation, please try to include estimates of the type, size, and placement of any new plants. If any structural elements will be added (retaining walls, large rocks, etc.) you will need to sketch them to the best of your ability and add details about the materials you will be using, the dimension of the elements, their color, and their placement. If you will be adding a mulching substrate (bark, pebbles, etc.), indicate the type, color, and placement.

(d) Turf Grass / Sod. Except for townhomes with limited lawn area or small lots, complete and full removal of grass/sod/turf will NOT be allowed and no removal is permitted for the front lots of single family homes as part of your Low Impact Landscaping Plan.

(e) Borders / Edging. Low Impact Landscaping areas must be surrounded by a border to clearly define the Low Impact Landscaping areas from the Turf areas. A Low Impact Landscaping area entirely enclosed within a retaining wall or raised bed qualifies as sufficiently defined. You may use metal edging in green, or black edging in rubber, either must be set with the top edge not more than two (2) inches above grade. You may apply for other edging authorized in the Master Rules.

(f) Weed Barriers / Landscaping Fabric. Any materials used to restrict weed growth in your Low Impact Landscaping must be hidden from view (covered by mulch or other acceptable substrate).

(g) Professional installation, referrals or recommendations as well as research should be done on local native plants.

(h) Overall Low Impact Landscape Maintenance Requirements. Low Impact Landscaping areas are subject to the same maintenance requirements as other landscaping and must be maintained at all times to ensure an attractive appearance. Owners with neglected lawns, Low-Impacting Landscaping or otherwise, may be subject to fines. Plants must be trimmed, beds must be kept weed-free, borders must be edged, and edging hardscape material must be maintained. No plants may encroach on public sidewalks. Sickly and dying plants must be removed and replaced. Perennials that die back during winter must be cut back to remove dead material. This includes most ornamental grasses and other flowering perennials that go dormant to the ground in winter. Mulched areas must have fresh mulch reapplied as needed. You should plan to re-mulch at least once per year.

(i) Recommended Websites:

- Conservation Landscaping, Rain Gardens at: https://www.montgomerycountymd.gov/water/rainscapes/about.html
- Create A Conservation Landscape at: https://mygreenmontgomery.org/project/create-a-conservation-landscape/

(j) ACC CHANGE APPLICATION CHECKLIST FOR LOW IMPACT LANDSCAPING. WHAT I MUST DO/INCLUDE.

- ☐ ACC Application
- ☐ House location survey showing with labels the proposed landscape project area(s)
- ☐ Outline of plan including size
- ☐ Materials (name, count, etc.) to be used and locations with Key for the Design drawing
- ☐ Design drawing
- ☐ Edging Materials for separation from other lawn or bed areas
- ☐ Report use of weed barriers or landscape bed fabric

E. All Hedges, Trees And Shrubs Must Be Neatly Trimmed And Maintained and their size maintained in proportion to the lot and home through pruning. At least annual trimming and shaping of hedges and shrubs is recommended.

F. Impact On Adjacent Lots**.** For any changes, Owners must always take into account erosion, drainage onto neighboring properties, or flooding when they make modifications to their yards. Any dumping of branches, grass clippings, leaves, mulch, or dead plants onto Community Property is prohibited. All trees and plantings on residential properties must be maintained by the homeowner.

G. Application And Review Is Not Required For The Following Modifications**:**

(1) Planting of annuals or perennials in existing beds.

(2) Installation of new beds less than four feet (4') wide around the perimeter of the house foundation (and deck, patio, or fence if present) and perimeter of the rear of the lot, provided that plants installed have a mature height of less than eight feet (8'); provided, however, that no bed extension in the front of a townhouse may result in the planting bed exceed fifty percent (50%) of the area between the foundation of the house and the sidewalk.

(3) Installation of new beds less than three feet (3') wide adjacent to walks from the driveway to the front stoop provided that plants have a mature height of less than three feet (3').

(4) Installation of black plastic edging or green metal edging around existing or approved beds, provided that it is installed to be below the height of the top of the grass.

(5) Installation of vegetable and flower gardens, provided that they are located in the rear yard, are not more than one-sixth (1/6) of the rear yard in size, and do not create an annoyance to neighboring properties in terms of adverse drainage conditions, overgrowth of plantings or unsightliness. No fruit, vegetable or other vines may be attached to or grow on perimeter or privacy fencing, railings or be attached to the house or garage. No offending odors should be created as a result of any garden. Fruit and vegetables should not be left to decay upon the ground. During winter, soil should be turned over. Any other landscaping modifications, including the following, require application and review by the ACC.

H. Raised garden bed Approval is required for any raised vegetable garden bed as the size and materials for support must be reviewed. Recommended materials include: materials that are waterproofed such as composite wood and in either gray, brown or muted red.

I. Stakes. Temporary, removable stakes made of metal and either green or black in color are permitted during the growing season (April 1 through October 1) and must be removed outside of that time frame. No other structures such as trellis's or vertical support may be installed without ACC approval. Metal stakes may not exceed four (4) feet in length or height. Mesh may be attached to the metal stakes to keep out deer, rabbits and other animals. No chicken wire or barbed wire is permitted.

J. Application and review is required for any other modifications to landscaping other than what is referenced above in Section 1.28 G. 1-5.

K. The planting of bamboo stalks or kudzu will not be approved—these particular plants have fast-growing roots, which can spread onto adjoining properties, and are very difficult to remove once the roots are established.

L. In general, landscaping in the rear yards of private lots requires an application if:

(1) Topography is being altered.

(2) A hedge, or plantings intended to screen a view, is requested.

(3) A paved surface is requested.

(4) More than fifty percent (50%) of the groundcover is to be altered.

(5) Plantings are proposed within ten (10) feet of any property line.

(6) A wall, decorative or structural (retaining) is requested.

(7) If in doubt about whether a landscaping proposal requires an application, it is better to submit an application.

M. Landscape Bed Edging/Hardscape. (ACC APPLICATION REQUIRED**).**

(1) Color. Landscape bed edging (including beds around trees) must be earth tone colors (grey, muted red, or brown). The discretion of the ACC and the Board will apply as to acceptable color; it must be complementary to the residence exterior colors. Only one type of landscape bed edging may be used per lot.

(2) Permitted Materials. Landscape bed edging must be constructed of commercially available landscaping blocks, stone, or metal edging. Metal edging must be installed so that one-third is visible above ground. **IF BRICKS ARE USED**, proper masonry techniques must be used including footers and mortar. Landscape bed edging may be no more than ten (10) inches higher than the adjoining, undisturbed ground or stacked the height of no more than three (3) approved landscaping blocks. **See examples below of permitted landscape edging/borders.**

(3) Materials Not Permitted. Plastic fencing, faux stones, wood, timbers. Use of gravel or loose stone as a landscape edge or border is prohibited. **See examples below of prohibited landscape edging/borders.**

(4) Landscape bed edging must be installed so that the top surface of all installed materials are flush (same height) with the adjacent "element" (block, edging material, etc). The top surface of the landscape edging as a whole shall be as close to level as is practical considering the natural slope of the adjacent ground.

(5) Landscape bed edging and tree rings shall not interfere with existing swales or water drainage.

(6) All areas with landscape bed edging or and tree rings shall be finished off with completed by an application of mulch within the boundary of the tree ring or landscape bed edging. Stones may not be used in lieu of mulch.

Permitted Edging – no ACC Application needed:

Black plastic with round top (only plastic permitted)

Green metal permitted

Permitted Edging with ACC Approval:

Paver stones

Paver stones

Brick set in mortar

EDGING MATERIALS NOT PERMITTED: Plastic fencing, faux stones, wood, timbers, gravel or loose stones.

(7) Tree rings and landscape bed edging need to be maintained to insure they look attractive and do not fall into a state of disrepair including specifically routine removal of weeds, grass, trash and leaves.

N. Use Of Stones, Rocks. **(**ACC APPLICATION REQUIRED). Notwithstanding provisions to the contrary provided in Section 1.28 A, regarding use of stones and rocks, the following uses may be applied for in an ACC Application for review by the ACC Committee.

Permitted uses:

(1) A few rocks may be used as a decorative element to a landscape design plan when specifically applied for and approved by the ACC Committee.

(2) Rocks or stones may be permitted if applied for and approved by the ACC Committee for the following uses and subject to restrictions on type, size, color selections provided below:

(a) To slow flow of rainwater from a downspout. Area for stones used below a downspout may not exceed that of a splash pan which will not be permitted where stones are used. Stones used should be natural color and between two (2”) to five (5”) inches in diameter. The location of such stones may be on the side or rear of the home if drainage and proper sloping permits (no such use is permitted in the front of the home). For use of stones in this area and due to size, no water penetrable and weed barrier fabric is needed. Area must be maintained in a weed free manner.

(b) For use as a function of and for limited to the purpose of drainage impacting your lot and your neighbor’s lot. [new, per recent Board appeal decision.]

(c) For use in areas where growing grass is significantly impeded as listed below:

(i) Under raised HVAC units. Area for placement of stones for this use may not exceed one (1) foot beyond the outer edge of the HVAC unit. Stones should be natural color of one to three inches in diameter. For use of stones in this area installation of a water penetrable and weed barrier fabric is required and area must be maintained in a weed free manner.

(ii) Under decks of any height. Area for placement of stones for this use may not exceed the outer edge of the deck. Use under decks shall not include use under steps for decks. Stones should be natural color one to three inches in diameter. For use of stones in this area installation of a water penetrable and weed barrier fabric is required and area must be maintained in a weed free manner.

(iii) Under bay windows. Use with ACC approval may be permitted except in the front of any home where they would be in the foundation bed which is not permitted and provided the lot owner verifies i.e. with directional information (north facing) or inaccessibility of sunlight penetration such as a space between the rear of the home and garage. Stones should be natural color of one to three inches in diameter. For use of stones in this area installation of a water penetrable and weed barrier fabric is required and area must be maintained in a weed free manner.

O. ACC APPLICATION CHECKLIST FOR LANDSCAPE CHANGES. WHAT I MUST DO/INCLUDE.

- ☐ Survey showing location of landscaping modification on site.
- ☐ Landscaping plan drawing with plants and other materials indicated on plans.
- ☐ Plans must include height of landscape materials selected at maturity.
- ☐ Indicate on the survey the location of any private drainage easement impacting your Lot and explain how project will/will not impact that easement.
- ☐ Call Ms. Utility to mark all underground electrical, sewer, water and other utility lines.

P. Use Of Composting Container (ACC APPLICATION REQUIRED)**.**

(1) Definitions:

(a) Composting" means the controlled aerobic biological decomposition of organic waste materials.

(b) "Composting Container" means a composting barrel tumbler, not greater than forty-eight inches (48") in any dimensions, on a stand and with a lid, to be used for Composting.

(2) ACC approval is required for prior to placing a Composing Container on the exterior of a Lot. The installation and use of Composting Containers must comply with the following:

(a) PREFERRED LOCATION: Composing Containers are only permitted in the rear yards, may not be stored in public view, and must be at least eight (8) feet from any side or rear property line.

(b) Composting is only permitted in a Composting Container. Underground composting is not permitted.

(c) Composting Containers must be elevated a minimum of two inches (2") off the ground.

(d) The Composting Container may not extend beyond the rear-sides of the dwelling.

(3) The lid to the Composing Container must remain securely fastened, except when removed to fill or empty the Composting Container.

(4) With the exception of the Composting Container, no other method of composting or other type of composter may be installed on the exterior of the Lot.

(5) The Composting Container must be maintained to avoid attracting pests, rodents, and raccoons. In particular, the Lot Owner is responsible for providing sufficient moisture, turning the barrel of Composting Equipment once a week, harvesting the composting when complete, and avoid putting meat, bones, fats and dairy products in the Composing Equipment.

(6) Composting odors shall be controlled and not allowed to become a nuisance to adjacent property owners. Arora Hills is dense, walkable community, so composting odor control is important.

(7) Compost is a soil enhancer. It is not a substitute for mulch.

(8) ACC APPLICATION CHANGE CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey showing:
  - the location of the composting container.
  - distances from the bin to the sides and rear property lines.
- ☐ Brochure or photo.
- ☐ Clear description including size, material, and color of the composting container.

1.29. LOT MAINTENANCE. This Section 8.1.10 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.10 Lot Maintenance. Each Lot (including the yard and the improvements contained thereon) must be regularly maintained and repaired, and kept in a neat, clean and sanitary condition. All grass, and shrubbery on any Lot must be regularly cut or trimmed. All grass, except where otherwise prohibited by governmental regulation, shall be maintained at a maximum height of four (4) inches and shall be as weed free as good environmental practice shall permit. No boxes, bottles, cans, leaves, bedding, building materials, garbage, trash, tires, appliances or other unsightly debris may be left outside on the Lot. Except for lawn furniture used on a Lot and firewood for the personal use of an Owner (either of which must be stored in the rear of a Lot), nothing may be stored outside or on a patio.*

The following are prohibited in the front of lots or the front half of interior side yards: utility meters, garbage cans, trash cans, recycle bins, permanent grills, rock gardens and vegetable gardens, recreation equipment and play equipment, hot tubs and spas.

1.30. MAILBOXES AND NEWSPAPER TUBES. This Section 8.1.11 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.11 Mailboxes and Newspaper Tubes. Mailbox design, structure, supports and locations shall be uniform in accordance with design criteria designed by the Board.*

1.31. PATIOS. (ACC APPLICATION REQUIRED). Homeowners are advised to consider the following:

A. Drawings submitted with the application do not need to be professionally done, but they must be to scale and show dimensions. Refer to the checklist for other information to be submitted with an application for a patio.

B. Any adverse drainage requirements, which might result from the construction of a patio, should be considered and remedied. Approval will be denied if the Board of Directors or the ACC believes that adjoining properties are adversely affected by changes in drainage. The use of a partially porous surface, or the installations of mulch beds adjacent to a deck, are ways to offset drainage concerns. ACC Applications for a patio to be installed on or near a private storm drainage easement must include an Arora Hills HOA Easement Waiver Form to be consider for review by ACC.

C. The following factors will be considered in the review of applications:

(1) Location. Patios should generally be located in rear yards. Side yard locations may be evaluated on their individual merit. Patio going past the side-line of the house may be permitted with privacy fence. Patios are prohibited at frontages. The privacy of adjacent homes, aesthetics, visibility, and other positive/negative features will be considerations in evaluating the location. Patios must be located within lot lines. No patio may intrude in any manner into Community Property. Patios cannot be built in non-construction easements. Patios may not adversely impact individual lot drainage or multi-lot drainage systems. Patios shall be built flush with the ground. No patio may exceed fifty (50) percent of the total usable area available in the rear of the property. (Available area does not include the driveway or stairs to a basement level.) No patio may be installed in any Public Utility Easement area i.e. within five feet of the rear or side lot line for lots adjacent to private alley roadways.

(2) Scale and Style. Patios should be of a scale which is compatible with the home to which attached, adjacent homes and the environmental surroundings. Due to the small size of the rear yards, some townhomes may not be acceptable for patios.

(3) Materials. Patios may be made of brick, flagstone, flagstone pavers, or an approved equivalent without the need for privacy screening. Concrete pavers, stained and/or stamped concrete which are not deemed to be an approved equivalent of brick or flagstone may be used when the patio is not visible from a public space or provided with privacy screening.

(4) Privacy Screening. Privacy screening for patios is required to be submitted as part of the application to the ACC for the patio. Some example of privacy screening which is acceptable is as follows:

(i) Shrub or hedge landscaping at least three feet (3') in height with a mature height not to exceed five feet (5').

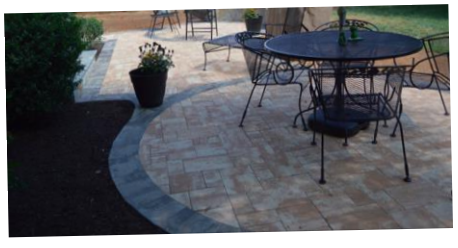
(ii) Privacy fencing. See privacy fencing section for acceptable means and methods.

(iii) Developer installed fencing on a case by case basis.

(5) Sitting Walls. Sitting walls installed as part of a patio shall be installed so that they do not protrude past the house line of sight and are not visible from the front yard. Side yard sitting walls will be accepted on a case by case basis under rare circumstances. Sitting walls shall also be constructed of similar material as installed for the patio surface. The color of the sitting wall shall also be of a similar color scheme as the patio surface. Height of the sitting should be between 18" to 24".

Color: All patio surfaces, regardless of material, shall be of similar color scheme in which the house it is being installed. Two tone colors are permitted on patio surface and walkways:

Sample two tone patios:



I. Landscaping: Landscaping around patios is strongly encouraged to soften corners and views from adjacent lots and to offset drainage concerns. Landscaping shall follow the rules set forth in this document and shall be submitted as part of the patio application.

J. Installation: The installation of patios shall be performed in a professional manner. This requirement is not intended to supersede the regulations set forth by the Montgomery County building department and the State of Maryland. However, the

installed patio shall be aesthetically pleasing for the life of the material. In no circumstances shall patio material be loosely installed on the existing backyard turf or dirt. All installed material shall be in accordance with manufactures recommendations for structural integrity.

K. Maintenance: It is the homeowner's responsibility to ensure that the patio will be secure throughout the four seasons. Patios have the tendency to float during the winter months; therefore, it is also the homeowner's responsibility to ensure that the patio is secure and does not create an annoyance to neighboring properties in terms of adverse drainage conditions, overgrowth of plantings through the patio joints or unsightliness.

L. ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Standard Architectural Change Application form must be completed with complete written description of the project.
- ☐ Copy of survey showing location on site.
- ☐ Scaled drawing showing plan (overhead view), elevations, and dimensions including length, width and height.
- ☐ Materials
- ☐ Color/finish.
- ☐ Indicate on the survey the location of any private drainage easement impacting your lot and explain how project will/will not impact that easement.

1.32. PATIO HEATERS. Patio heaters utilizing an integral LP-Gas container greater than 1.08lb (0.49 kg) propane capacity shall be used in accordance with their listing and the manufacturer's instructions. Patio heaters shall not be located within 5 ft (1.5 m) of exits from an assembly occupancy.

1.33. POOLS. This Section 8.1.16 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.16 Private Swimming Pool. No above ground private swimming pools of any type shall be permitted. No in ground swimming pools, hot tubs, spas or jacuzzis of any type shall be permitted without prior approval of the ACC.*

1.34. PUBLIC UTILITY EASEMENT:

This Section 8.7 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.7 Limitation of Use of Easement Areas. In those strips of parcels of land designated on the Subdivision Plat as "easement" areas or otherwise designated as easement areas elsewhere in this Declaration or otherwise, no structure shall be placed or permitted to remain which may damage or interfere with the installation and maintenance of utilities or which may change the directional flow of drainage channels or obstruct or retard the flow of water through drainage channels. The reserved easement areas of each Lot and all improvements thereon (except improvements, installations or maintenance for which a public authority or utility company is responsible) shall be maintained by the Owner of the Lot. USE OF AREAS, IF ANY, DESIGNATED AS CONSERVATION AREAS MAY BE SUBJECT TO CONSERVATION EASEMENT AGREEMENTS RECORDED AMONG THE LAND RECORDS OF MONTGOMERY COUNTY, MARYLAND.*

A. Public Utility Easements. Most Lots in Arora Hills located next to private roadways are subject to a Five foot (5') Public Utility Easement and may be subject to other such easements. Easements recorded in Montgomery County Land Records and which may be referenced on Lot Owners Title Insurance Policies. Some drainage systems are surface i.e. those marked on

surveys for Lots and/or community plats such as townhouses with detached garages where runoff must flow side to side making higher elevated Lots dependent upon lower elevated Lots for drainage. Some drainage systems are in-ground via surface drains in the yards and piping connected to downspouts. The in-ground systems are connected to private drainage pipes running on HOA property which are connected to county maintained storm water management systems.

B. Maintenance. It is the responsibility of the Lot owner to maintain any such Public Utility Easement areas including not installing or permitting to be installed any structure which may damage or interfere with the installation and maintenance of utilities.

C. Owners may not change, remove or otherwise alter any such Public Utility Easement areas or erect permanent structures over them. Owners are notified that any landscaping that may be planted on, over or near any such Public Utility Easement area shall be subject to being removed and replanted in the event a public utility company shall require access to the Public Utility Easement arear. The Association shall not be liable or responsible for any damage caused to such landscaping or to any improvements that the Owners construct on, over or near the Public Utility Easement. Any change or modification to a lot that may impact a Public Utility Easement area must be identified in the ACC Application, must include the lot survey or the Public Utility Easement plat showing the location of the easement area, and information and explanation of same for ACC Consideration. Final approval, if any, will be conditioned upon receipt of a signed Arora Hills HOA Public Utility Easement Waiver Form. Any construction adversely impacting a Public Utility Easement area may necessitate removal and restoration at the owner's risk and expense.

1.35. RAIN BARRELS. (ACC APPLICATION REQUIRED). Rain barrel installation should incorporate the following criteria:

A. The roof size and number of gutters should be factored in when determining the size of the rain barrel.

B. The rain barrel should match the house as possible i.e. match the siding color.

C. The rain barrel should be located in the rear and sides of the house and/or garage and not in front of either and may need to be screened if in public view.

D. The rain barrel must be a closed system with a secure lid and piping. The rain barrel must have an overflow valve to permit safe release of water if the rain barrel is full. Overflow should be directed to a safe and appropriate location away from the building foundation.

E. The foundation/base for the barrel shall be designed to support the weight of the barrel at maximum capacity. This could be on the order of hundreds of pounds (lbs) of water (8.35 lbs per gallon). A recommendation would be a pressure treated frame filled with 1-inch of gravel or stone. Concrete blocks or cinderblocks may be used but should be properly concealed or covered.

F. ACC APPLICATION CHANGE CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Picture showing proposed rain barrels.
- ☐ Proposed locations drawn on survey.
- ☐ Description of size, color, how system is closed
- ☐ Description of foundation.
- ☐ Proposed overflow plan.

1.36. RECREATION AND PLAY EOUIPMENT. This Section 8.1.15 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.15 Play Equipment. Play equipment shall not be placed on any lot without prior written approval of the ACC, shall be screened from public view, and is permitted in the rear of Lots only. Play Equipment shall include basketball hoops.

(See separate entry for basketball goal). (**ACC APPLICATION REQUIRED)** Semi-permanent play equipment, which either constitutes a structure or is appurtenant to an existing structure requires approval. Examples include sandboxes, play-houses, swing-sets, trampolines, etc. The following factors will govern approval of such equipment.

A. Location. It is the intention of the Master Rules that children's play equipment be placed out of public view. The appropriate location for children's play equipment is in the rear of private lots. Additionally, children's play equipment should be well maintained, screened out of public view and shall not be placed beyond the lines of the house or garage.

B. Scale and Design. The equipment should be generally compatible with the lot size. The design and any visual screening are additional considerations in evaluating whether or not there will be an adverse visual impact.

C. Color and Materials. Equipment constructed of wood and left in a natural condition to weather is encouraged, to blend with the natural environment.

D. ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey shows location of the recreational equipment.
- ☐ Brochure or catalog photo with a clear description and size of the proposed
- ☐ Equipment.
- ☐ Clear indication of the color/finish of the equipment.

1.37. RENEWABLE ENERGY - SOLAR, WIND, GEOTHERMAL. (ACC APPLICATION REQUIRED).

The Arora Hills Community, Montgomery County Maryland, shall be bound by the laws of the County. The Montgomery County Council passed Bill 33-07 in April 2008 and effective August 2008 that added section 40-3A to the County Code and stated the following:

MONTGOMERY COUNTY CODE: 40-3A Renewable energy devices.

a) Definitions. In this Section, the following words have the meanings indicated: "Renewable energy" means the following energy sources or technology:
1) solar
2) wind and
3) geothermal

"Renewable energy device" means a device that:
1) creates, converts, or actively uses renewable energy; and
2) meets safety and performance standards set by a nationally recognized testing laboratory for that kind of device.

"Owner of any building" includes a unit owner in a condominium, a lot owner in a homeowner's association, and a shareholder in a cooperative housing corporation.

b) Prohibition. A person must not create or enforce any deed restriction, covenant, rule, or regulation, or take any other action, which would prohibit the owner of any building from installing a renewable energy device.

c) Applicability
1) This, except as provided in subparagraph (2) this Section applies to all deed restrictions, covenants, rules, and regulations adopted before and after this Section became law.
2) This Section does not apply to a restriction imposed by:
(i) a forest conservation easement: or
(ii) a historic preservation requirement.

Based on the new County Code, the ACC and the Arora Hills HOA cannot prohibit any installations of solar, wind, or geothermal renewable energy devices. The ACC shall review any applications for such renewal energy devices with the following boundary conditions.

A. SOLAR SYSTEMS – RENEWABLE ENERGY. (ACC APPLICATION REQUIRED).

(**1**) Approval of Installations**:**
(a) Based on previously submitted solar system applications, expectations are that all solar systems will be roof-mounted systems.

(b) Only solar systems that are specifically designed and approved for urban or suburban residential use shall be reviewed and installed.

(c) Only commercially or professionally made devices are allowed. "Homemade" devices are not permitted due to the safety and aesthetics aspects of such devices.

(d) Detailed plans for placement and installation of any solar panel must be submitted to the ACC for review and receive written approval from the Association prior to such installation. Plans should include color photos of the roof locations (house and/or garage) where the solar panels will be installed. Photos should clearly show existing roof structures, venting pipes and any other protrusions.

(e) An illustrated brochure of the proposed system, the attachment to the roof structure, materials to be used, drawings showing the location and number of collectors and the location of exterior system components must be submitted with the Architectural Request.

(f) A certified efficiency study shall accompany the ACC Application. This document will certify that the chosen system location will allow for compliance with minimum solar efficiency requirements.

(g) A Montgomery County Permit is required for the installation of such device and ancillary equipment. The homeowner must use an installer which is a licensed solar equipment contractor with the appropriate license. Homeowner is entirely and solely responsible for knowing what permits may be required, and obtaining any such permits before installation begins.

(h) Homeowners are urged to check with their home builder or insurance company prior to installation of devices for how such installation may impact their roof warranty or other aspects of their structure. Neither the ACC nor the HOA Board of Directors is liable to the property owners from roof damage or for impact on roof warranties.

(2) Roof-Mounted Solar Panels:

(a) Roof-mounted systems should be installed so that the panels are flush-mounted and centered on the roof of the house or garage.

(b) Solar panels should be an integrated part of the roof design and mounted directly to the roof deck or, if mounted on or over the existing roof tile, should be flush with the slope of the roof. Solar units should not break the roof ridgeline.

(c) The solar panels, piping, or any exposed part of the installation may not be higher than the roof peak.

(d) Visibility of devices and their components should be minimized from public view and may be required to be screened from neighboring property in a manner approved by the ACC.

(e) All roof mounted equipment should match the color of the roof material.

(f) All exterior plumbing lines and materials should match the color of adjacent roof material and walls. Aluminum trim, if used and visible, should be anodized or otherwise color treated to blend into the surroundings as much as possible.

(g). No existing roof structure including but not limited to plumbing vent(s) may be cut, altered or covered without (1) ACC approval of aesthetics and (2) provided any required permits authorize such change i.e. Montgomery County Department of Permitting Services and WSSC.

B. WIND SYSTEMS – RENEWABLE ENERGY.

(1) Only Wind systems that are specifically designed and approved for urban or suburban residential use shall be installed. These systems will generally be of the vertical axis wind turbine (VAWT) design.

(2) An appropriate wind study shall accompany the application to document that sufficient wind exists to support the installation of the wind-based energy system.

C. GEOTHERMAL-RENEWABLE ENERGY. Geothermal systems shall be reviewed by the ACC on a case by case basis for aesthetics and architectural impact.

1.38. RETAINING WALLS. (ACC APPLICATION REQUIRED). Except for builder installed retaining walls, all walls require ACC approval. Retaining walls are permitted in the rear of the lot, behind the house line.

A. RETAINING WALL MAINTENANCE STANDARDS – WHAT I MUST FIX.

- Retaining Walls.
- Loose or cracked wood or stones.
- Precariously angled walls.
- Rotted wood.
- Unapproved, unsafely, or unprofessionally constructed walls.

1.39. SATELLITE DISH. All satellite dish installations meeting the provisions of Section 1.39 B below have ACC approval, no application is needed. The ACC will approve Satellite dishes as long as they conform with the Tele-Communications Act of 1996. The Association has an interest in maintaining the aesthetic harmony of the community without interfering with homeowners' rights. Information required when applying for a satellite dish include:

A. ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE:

- ☐ Dish cannot exceed 1 meter (39 inches) in diameter.
- ☐ Preference is for dish to be installed on the roof.
- ☐ Dish should be out of view from the street.
- ☐ If the dish must be placed within view of the street for acceptable reception, then installation on the ground is preferred and inexpensive screening or plantings is required to camouflage the equipment and you may be required to paint the dish to match the color of the siding
- ☐ Include in your ACC Application details on your plan to screen the satellite dish.
- ☐ House Location Survey showing proposed location of the satellite dish.

B. ACC Approval is not required if the dish(es) is 1 meter or less and is installed on the house or garage roof out of view from the street (public or private).

1.40. SIGNS. This Section 8.1.18 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.18 Signs. No sign of any kind, unless allowed by law, other than those of the Declarant, or its designated agent, or which shall have the specific approval of the Declarant during the period of construction and sales of the Residences being constructed upon the Property, shall be displayed in public view on any Lot unless*

approved in writing by the ACC, except that one sign of not more than four (4) square feet advertising the Lot for sale or rent will be permitted.

A. Real Estate Signs. Only one real estate sign, not to exceed four (4) square feet in area advertising a property for sale or rent may be displayed on a lot. Signs may only be placed in the front yard of available properties. Such signs must be removed within one week following the sale or rental of a home.

B. Security Signs. Two security signs, each not exceeding a total of sixty-four (64) square inches may be posted on the property. Only one such sign may be posted forward of the front plane of the home. The approved location shall be at the front door. A second sign may be posted in the rear yard. All other signs are prohibited including but not limited to commercial and home office advertisements.

1.41. SINGLE FAMILY DWELLING USE. This Section 8.1.19 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.19 Single Family Dwelling Use. None of the Lots shall be used for any purpose other than for a one family, non-commercial and non-industrial, Residence use except as provided for hereinafter.

1.42. STORAGE PODS – SELF MOVING STORAGE. Storage PODs or other self-moving containers are permitted up to fourteen (14) days without prior ACC approval.

1.43. STORAGE SHEDS. (ACC APPLICATION REQUIRED).

This Section 8.1.20 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.20 Storage Buildings/Sheds and Accessory Structures. Gazebos, pergolas, trellises, sheds, decks and green houses are permitted in rear of Lots only and shall be complimentary to the design of the dwelling. No metal outside storage buildings or Sheds shall be permitted. Gazebos, pergolas, trellises, sheds, decks and green houses shall not be permitted unless approved in writing by the ACC and then subject to the condition that if said structure is used for storage it is used only by the residents of such Lot, and used only for storage of household and lawn maintenance items.

A. Storage sheds must be attached either (i) to the rear or to the side of the dwelling unit and must be positioned behind an ACC approved six foot (6") privacy fence. The height of the storage shed may only be equal to or less than the top of privacy fence and may not be visible from the street. The storage she must adhere to the guidelines below.

(1) Design. The architectural design of the shed should (a) be compatible with the design of the home or (b) be commercially available and made of a resin or polycarbonate material.

(2) Size. Sheds should not exceed forty-eight (48) square feet of floor space and six feet (6') in height at the highest point.

(3) Materials. The finish materials must (a) be identical to those for the home or (b) be commercially available and made of a resin or polycarbonate material.

(4) Colors. The color scheme must (a) be the same as for the home if the shed is made of metal or siding or (b) neutral earth tones colors if made of resin or polycarbonate.

(5) Roof. The roof slope and the type and color of roofing material should (a) match the house if the shed is with of metal or shingles or (b) may match the roof color or be neutral earth tones if made of resin or polycarbonate.

(6) Placement: The location of the site for the storage shed must (a) be level and (b) may not be placed directly on grass.

(7) Due to the small size of townhouse rear yards, a storage shed on a townhouse lot must be screened from public view. Screening may include (a) an ACC approved six foot (6') privacy fence or (b) ACC approved landscaping plan.

(8) STORAGE SHED ACC APPLICATION CHECKLIST. WHAT I MUST DO/INCLUDE.

- ☐ Survey showing location, any screening or use of privacy fencing for screening.
- ☐ Scaled drawing showing front and side elevations, and dimensions including length, width and height.
- ☐ Materials, color/finish.
- ☐ Placement: describe location i.e. level surface and proposed preparation of and material for location surface.

1.44. STORAGE TANKS. This Section 8.1.21 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.21 Storage Tanks. No storage tanks of any kind shall be placed or maintained within or upon any Lot except at such locations and in such manner as approved by the ACC.*

1.45. TRASH This Section 8.1.24 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

> *DECLARATION: 8.1.24 Trash. Except in connection with temporary construction activities: (i) no lumber, metals, bulk materials, garbage, refuse or trash shall be kept, stored or allowed to accumulate on any Lot (other than in an approved structure); (ii) No Lot shall be used or maintained as a dumping ground for any material; (iii) Trash, garbage or other waste shall not be kept on any Lot except in sanitary containers. All equipment and containers for the storage or disposal of such material shall be kept in a good, clean and sanitary condition; (iv) During construction of any improvements on the Property, the Owner shall keep any construction site free of unsightly accumulations of rubbish and scrap materials, and construction materials, trailers, shacks and the like employed in connection with such construction shall be kept in a neat and orderly manner; (v) If trash or other refuse is to be disposed of by being picked up and carried away on a regular and recurring basis, containers may be placed in the open on any day that a pickup is to be made, at such place on the Lot so as to provide access to persons making such pickup. At all other times, such containers shall be stored in such a manner so that they cannot be seen from adjacent and surrounding property. If a central trash collection area is designated, the Association may regulate the use of such trash enclosures; and (vi) The ACC, in its discretion, may adopt and promulgate reasonable rules and regulations relating to the size, shape, color and type of containers permitted and the manner of storage of the same on the Property.*

A. Trash - Maintenance Of Yards**.** Bags of trash should always be kept in air-tight trash containers with lids, and should be stored out of public view trash cans and recycle bins are permitted to be placed in designated areas to be picked up on pickup days. Placement of trash cans and recycle bins in public view are permitted from 5 p.m. the day before pickup and up to 10 a.m. the day after pickup. Yards are not areas for the storage of items, and they should be cleaned of litter, debris and old newspapers on a regular basis.

1.45. TREES AND TREE REMOVAL. (ACC APPLICATION REQUIRED FOR NEW TREES) New trees or shrubs with mature height eight (8) feet or taller must approval of the ACC Committee. Application should include a description of the tree, mature height, and location shown on the survey. Trees may be removed without ACC approval provided the stump is removed, the area is restored to grass or mulched if in a mulch bed.

This Section 8.1.25 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION: 8.1.25…All trees on Lots, shall be properly maintained by the Owner of said Lot.

1.46. USE OF HOA AREA. This Section 8.2 below is an excerpt from the Declaration and may not be changed or amended except by amending the Declaration.

DECLARATION. 8.2 Use of HOA Area. No Owner shall make any private, inclusive, or proprietary use of any of the HOA Area. No Owner may attempt to dismantle, remove, alter or change in any way any structure located on the HOA Area without the express written authority of the Board of Directors.

1.47. WALKWAYS. (ACC APPLICATION REQUIRED). Approval is required for a change in an existing walkway or the construction of a new walkway. Materials to be used should be compatible with existing materials in the Community (e.g., flagstone, brick, or poured concrete). Long stretches of poured concrete should be avoided, and walkways of wood decking will generally not be approved.

A. WALKWAY MAINTENANCE. WHAT I MUST FIX.

- Loose or cracked stones or cement.
- Dangerously angled stones due to ground settling.
- Unapproved, unprofessionally done, or unsafely placed timbers, stones, etc.
- Grass/weeds coming up between the bricks or stones.

SECTION I - CONTINUED - APPENDIX A

ACC MODIFICATION - APPLICATION – REVIEW BEFORE FILING

All changes or modifications to the exterior appearance of your home and/or lot must be submitted for review by the Arora Hills HOA Architectural Control Committee.

Modifications include removing and planting trees, adding edging materials to foundation beds, decks, trampolines, play sets, patios, changing door color, and more. The Guidelines at www.arorahills@comcast.net under the Resource button are searchable and the Application there is a fillable form.

The Committee meets on the second Monday of the month to review completed applications. The applications are due by the first Wednesday of the month.

Application Submission Procedures

- Check the Guidelines (link above) for your change or project (Use search feature to find your project).Complete the application (fillable form link above) for each change or project. Include a detailed description on the application i.e. measurements, materials, all colors, etc.
- Attach all items required on the project checklist included in the guidelines.
- Show the location of the project on the House Location Survey (required for every project from solar panels to new vents. The Survey was provided to you at settlement and a copy can be requested from CPJ Engineering at 301-434-7000.
- Incomplete applications will not be reviewed by the ACC Committee; they will be returned which may delay your project. Submit your application before the due date for a preliminary review by the onsite office.
- Applications may be emailed to arora_hills@comcast.net, or mailed or dropped off at the office at 23030 Birch Mead Road. There is a drop box at the front door for afterhours use.

- Contact the office if you plan to attend the ACC Review Meeting which is open to owners to make sure there is quorum to hold the meeting. Owners may bring their contractor to answer ACC Committee questions. Owners should introduce their contractor to the Committee as the meetings are for owners. Contractors may not attend the meetings without the Owner's attendance and introduction.

- Neither the ACC Committee nor management are permitted to review, discuss or negotiate an Owner's ACC Application or project with a contractor. Communications regarding applications are limited to Owners and the ACC Committee or Management.

- Results will be emailed within one week of the meeting.

Go to www.arorahillshoa.com to view sample applications for popular changes i.e. solar panels and decks. See also a sample House Location Survey showing a project location.

Arora Hills HOA Architectural Change and/or Modification Application

TO:	**Architectural Control Committee** **Arora Hills HOA** **23030 Birch Mead Road** **Clarksburg, MD 20871**	**Phone:** **Fax:** **email:**	**(301) 515-8290** **(301) 515-8291** **arora_hills@comcast.net**

Owner's Name: _____

Property Address: _____

Off-Site Mailing Address (if different): _____

E-Mail (print clearly): _____ **Phone:** _____

Check one - style of home: ____ Townhome ____ Single Family attached garage ____ Single Family detached garage

Modification Request:

____ Fence ____ Deck ____ Patio ____ Landscaping ____ Play Equipment ____ Awning
____ Screened in porch ____ Pergola ____ Color Change ____ Other_____

Description: _____
Dimensions: _____
Colors:_____ Materials: _____
Additional to clarify: _____
_____
_____

Application must include the following:

- ☐ House location survey with project drawn to scale and labeled.
- ☐ Color photos showing dwelling and proposed location.
- ☐ Materials and color picture examples of finished project.
- ☐ Any relevant sketches, drawings, photos, brochures, illustrations, dimensions, elevation plan (side view)

Signatures Signature of at least four (4) property owners who are most affected because they are adjacent and/or have a view of your change is generally required. Should one of your neighbors disapprove please so indicate with the reason for their disapproval noted in the comment section. Their signatures indicate an awareness of your intent and do not constitute or indicate approval or disapproval by the committee.

Name:	_____	Name:	_____
Address:	_____	Address:	_____
Signature:	_____	Signature:	_____
Name:	_____	Name:	_____
Address:	_____	Address:	_____
Signature:	_____	Signature:	_____

Owner's Acknowledgments (initial each) indicating owner understands:

____ 1. That nothing herein contained shall be construed to represent that alterations to land or buildings in accordance with these plans shall not violate any of the provisions of building and zoning codes of the county to which the above property is subject. Further, nothing herein contained shall be construed as a waiver of modification of any said construction.

____2. That no work on this request shall commence until written approval of the Architectural Control Committee has been received by me.

____3. That any construction or exterior alteration undertaken by me or in my behalf before approval of this application is not allowed; that, if alterations are made, I may be required to return the property to its former condition at my own expense if this application is disapproved wholly or in part; and, that I may be required to pay all legal expenses incurred.

____4. That any approval is contingent upon construction or alteration being completed in a workmanlike manner.

____5. That members of the Architectural Control Committee and/or agents of the Committee are permitted to access my/our Lot and perform inspections during the course of the alteration work and within fifty-two (52) weeks following the homeowner notice of completion of the work in order to ensure compliance with the Governing Documents.

____6. That a copy of this application will be returned to me, if I request, after review of the Architectural Control Committee and a copy will be maintained in the ACC file for my address.

____7. That there are architectural requirements covered by the Covenants and a review board process as established by the Board of Directors.

____8. That the alteration authority granted by this application will be revoked automatically if the alterations requested have not commenced within 180 days of the approved date of this application and/or completed by any date specified by the Committee.

____9. That all proposed improvements must meet county codes. My signature indicates that these standards are met to the best of my knowledge. I understand that application for all required building permit(s) are my responsibility.

____10. That any variation from the original application must be resubmitted for approval.

____11. That I have reviewed the Architectural Change Application Checklist in the Master Rules for my project to identify if my project has additional requirements that I must provide with this application.

____12. That if my property/lot is subject to a private drainage easement or roof drainage easement, I verify that my proposed alteration does not impact or touch the easement area or, if it impacts or is near the easement area, I will provide a copy of the easement plat, information and explanation of same for ACC Consideration and I have attached a signed Arora Hills HOA Private Easement Waiver Form. Any construction adversely impacting a private drainage easement or roof drainage easement may necessitate removal and restoration at the owner's risk and expense. Select one answer below:

____ Yes my project is within a drainage easement. ____ No my project is not within a drainage easement. (____) Initials

____13. That if my proposed alteration is located in any Public Utility Easement (PUE) area or, if it impacts or is near the easement area, I will provide a copy of the easement plat, information and explanation of same for ACC Consideration and I have attached a signed Arora Hills HOA Public Utility Easement Waiver Form. Any construction adversely impacting a Public Utility Easement may necessitate removal and restoration at the owner's risk and expense. Select one answer below:

____ Yes, my project is within a PUE. ____ No, my project is not within a PU E. (_____) Initials

____14. That the homeowner contact the property manager upon completion of the work and provide photos of the completed project.

____ 15. That my project is independent of any existing or proposed similar project on my neighbor's property.

Owner / Applicant Signature: _____Date: _____

Owner Comments: _____

FOR COMMITTEE USE ONLY **Date Received: _____**
Approved: _____/Date: _____ **Disapproved: _____/Date: _____**

NOTE:

THIS ACC APPLICATION/APPROVAL PROCESS WILL REMAIN AN OPEN/PENDING FILE UNTIL (1) I PROVIDE NOTICE IN WRITING (BY EMAIL OR MAIL) THAT MY APPROVED PROJECT HAS BEEN COMPLETED AND (2) I PROVIDE A PHOTO SHOWING THE COMPLETED PROJECT (BY EMAIL OR MAIL).

Notice of Completion given by: _____
Follow up inspection by: _____ Date: _____

ACC APPLICATION RETURN TO OWNER MEMORANDUM

To: **_____, Arora Hills HOA Owner**

Address: **_____**
_____

Re: ACC Application
Date:_____

The Architectural Control Committee reviews completed ACC Applications.

The Application attached for the address listed above is incomplete. The following items have not been provided:

- ☐ Signatures of four most affected property owners.
- ☐ Project drawn-shown on your house location survey (including measurements if applicable).
- ☐ Color photos showing where project will be installed (pre-project status).
- ☐ Details of proposed project including: sketches, drawings, pictures, catalog illustrations, measurements, color selection for all materials, design plan for patio pavers etc.
- ☐ Items on Community Guidelines checklist for your project have not been provided. See attached list.
- ☐ Submission is illegible or unreadable; please re-submit using clearer materials.
- ☐ Check box on application that the project will not impact any 5' rear Public Utility Easement, side 5' Public Utility Easement for a corner lot on a private alley roadway, or drainage easement.
- ☐ If project does impact a drainage easement area, return Hold Harmless And Indemnification Agreement For Use In Private Drainage Easement.

Please return the entire ACC Application and requested items by email, mail or use the Clubhouse drop box at 23030 Birch Mead Road. Your application once verified as completed, will be submitted to the ACC Committee for review at their next scheduled ACC Meeting.

SECTION I - CONTINUED - APPENDIX B PRIVATE DRAINAGE EASEMENT, HOLD HARMLESS AND INDEMNIFICATION AGREEMENT

ARORA HILLS HOMEOWNERS ASSOCIATION, INC.
HOLD HARMLESS AND INDEMNIFICATION AGREEMENT
FOR USE IN PRIVATE DRAINAGE EASEMENT

THIS HOLD HARMLESS AND INDEMNIFICATION AGREEMENT is made and entered this ____ day of _____, 2016 by and between _____ (Owner) and _____ (Owner) (hereinafter referred to collectively as the "Owners"), and the Arora Hills Homeowners Association, Inc. (the "Association").

RECITALS

R1. _____ (Owner Name) and _____ (Owner Name) are the owners of property located at _____, Clarksburg, Maryland 20871 ("Lot _____").

R2. In accordance with Article V, Section 5.2.1 and 5.2.2 of the Association's Declaration, no improvement, change or other alteration shall be commenced, directed, placed, moved, altered or maintained upon the Property of the Association (defined in Article 1, Section 1.25 of the Declaration), or the Lot of an owner that will alter the structural integrity of the building or otherwise affect the Property and/or Lot, interest or welfare of any other Lot Owner, materially increase the cost of operating or insuring any of the HOA Area, or impair: shape; height; material; color; type of construction; and/or any other proposed form of change (including, without limitation, any other information specified by the ACC) until complete plans and specifications for such improvement, change, or other alteration shall have been submitted to and approved in writing by the ACC.

R3. In accordance with Article V, Section 5.2.3 of the Association's Declaration, upon approval by the ACC of any plans and specifications submitted pursuant to Article V of the Declaration, a copy of such plans and specifications, as approved, shall be deposited among the permanent records of the ACC and a copy of such plans and specifications bearing such approval, in writing, shall be returned to the applicant submitting the same. Owners shall be responsible for their use of their property and the avoidance of violations of County and State regulations as to its use.

R4. In accordance with Article V, Section 5.3 of the Association's Declaration, construction or alterations in accordance with plans and specifications approved by the ACC shall be commenced within six (6) months following the date upon which the same are approved by the ACC, and shall be substantially completed within twelve (12) months following the date of commencement. There shall be no deviation from the plans and specifications approved by the ACC without its prior consent in writing. Approval of any particular plans or specifications or design shall not be construed as a waiver of the right of the ACC to disapprove such plans and specifications which are subsequently submitted for use in any other instance. The Owner shall obtain any necessary permits required by the County, or State, or other appropriate governmental entity.

R5. In accordance with Article V, Section 5.4 of the Association's Declaration, upon the completion of any construction or alterations or other improvements or structure or change in accordance with plans and specifications approved by the ACC, the ACC shall, at the written request of the Owner thereof, issue a certificate of compliance which shall be prima facie evidence that such construction, alteration or other improvements referenced in such certificate have been approved by the ACC and constructed or installed in full compliance with the provisions and requirements of the Declaration as may be applicable.

R6. In accordance with Article IX, Section 9.2.1.3 of the Association's Declaration, the Declarant hereby reserves to itself and its successors and assigns an easement and the right to grant and reserve easements over and through the Property for the construction and upkeep of storm water management facilities, including storm water retention and water quality areas.

R7. Pursuant to a Deed of Declaration, Easement and Assignment between the Declarant and the Association recorded at Liber _____, Folio ____ et. seq. in the Land Records for Montgomery County (the "County"), a private storm drainage easements is on the Lot referenced herein.

R8. In accordance with Article VIII, Section 8.7 of the Association's Declaration, in the parcels of land designated on the Property as "easement" areas, no structure shall be placed or permitted to remain which may damage or interfere with the installation and maintenance of utilities or which may change the directional flow of drainage channels or obstruct or retard the flow of water through drainage channels. The easement areas of each Lot and all improvements thereon (except improvements, installations or maintenance for which a public authority or utility company is responsible) shall be maintained by the Owner of the Lot.

R9. In accordance with Article IX, Section 9.3 of the Association's Declaration, the Association, its managing agent and any other Persons authorized by the Board of Directors have a right of access over and through any portion of the Property of the Association to make inspections, correct any condition originating in a Lot threatening another Lot, correct drainage, perform installations or upkeep of utilities, landscaping or other improvements located on the Property for which the Association is responsible for upkeep, or correct any condition which violates the Association Documents. Each Owner shall be liable to the Association for the cost of all upkeep performed by the Association and rendered necessary by any act, neglect, carelessness or failure to comply with the Association Documents for which such Owner is responsible.

R10. Page 12 of The Association's Community Standards and Guidelines regarding Decks provides, in part, any adverse drainage requirements, which might result from the construction of a deck, patio, or screened porch, should be considered and remedied. The same section also provides approval will be denied if the Board or ACC believes that adjoining properties are adversely affected by changes in drainage, and that decks cannot be built in non-construction easements.

R11. The Owner(s) submitted an Application attached hereto and incorporated as Exhibit A ("Project") in accordance with Article V of the Association's Declaration and the Association's Community Standards and Guidelines.

R12. The Association's ACC reviewed the application by the Owner(s) for their Project on the _____ day of _____, 201____.

R13. Subject to the conditions set forth herein, the Association agrees that the Project is permissible upon the Lot and within the storm drainage easement.

R14. The Association is willing to allow the Owner(s) to proceed with the Project which is within the storm water drainage easement on their Lot because certain assurances are being provided by the Owner(s) to the Association.

R15. The Association agrees to permit the Owner's Project on the Lot subject to the conditions set forth below, which terms and conditions are acceptable to the Owners as evidenced by their signatures below.

AGREEMENT

NOW THEREFORE, the parties, in consideration of the above recitals, each of which is made a part of this Agreement, and for valuable consideration, the receipt and sufficiency of which are hereby acknowledged, agree:

1. Subject to the conditions set forth herein, the Association approves the Application.

2. The Owners, and their successors in interest, heirs, assigns and subsequent record owners and/or purchasers of the property, hereby confirm and agree that so long as they own the Lot they shall be responsible for and shall take action to correct damage resulting from the change, obstruction, or retardation of the direction or flow of any drainage channels within the storm water drainage easement pursuant to the approval of the Project in the storm water drainage easement area on/within the subject Lot. The Owner(s) absolve the Association, its management agent, insurers, attorneys, Officers, Directors, and/or Assigns from any responsibility, whatsoever, relating in any way to the maintenance, repair and replacement of the storm water drainage easement on/within the Lot. The Owner(s) further agree that they shall be responsible to comply with all applicable laws, ordinances, and covenants relating to the storm water drainage easement.

3. The Owner(s), and their successors in interest, heirs, assigns and subsequent record owners and/or purchasers of the Lot, hereby indemnify and hold the Association, its management agent, insurers, attorneys, Officers, Directors, Agents, Assigns and/or Owners harmless to the fullest extent permitted by law from all claims arising from the change, obstruction, or retardation of the direction or flow of any drainage channels within the storm water drainage easement due to the Project on the Lot. The Owner(s) further agree that they shall indemnify the Association for any claims brought against the Association relating to the terms of this agreement including but not limited to attorneys' fees.

4. The Owner(s) acknowledge that, in the event of a violation of the covenants of this Agreement, in addition to all other remedies available to the Association by law or under the Association's Declaration, Bylaws, Community Standards and Guidelines, and Rules and Regulations, the Association may rescind the permission herein granted. If the Association is required to enforce any terms of this Agreement, it shall be entitled to the costs of enforcement including but not limited to its attorneys' fees.

5. The Association shall have the right to inspect the Lot to ensure compliance with its Declaration, Bylaws, Community Standards and Guidelines, and Rules and Regulations. The Owner(s) shall take all steps necessary to comply with any reasonable requests by the Association to complete or modify the Project as necessary to comply with any costs, industry standards, or to conform with structural and/or aesthetic conditions throughout the Association.

6. The Owner(s) acknowledge and agree that they have entered this agreement as their own free will. The Owner(s) further acknowledge that they have had sufficient time to review this Agreement

7. Upon completion of the Project, the Owner(s) shall request a certificate of compliance from the Association. Upon the issuance of the certificate of compliance by the ACC or Board, the Association shall file this agreement and the certificate of compliance in the Land Records for Montgomery County, Maryland for purposes of notifying successors in interest, heirs, assigns and subsequent record owners and/or purchasers of the Lot.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF this Agreement has been executed as of the date first above written.

_____ _____

_____, Owner, Lot ___ Date

_____
Clarksburg, Maryland 20871

_____ _____

_____, Owner, Lot ___ Date

_____
Clarksburg, Maryland 20871

_____ _____
Authorized Agent, Title Date
Arora Hills Homeowners Association, Inc. NOTARY FORM

SECTION I – APPENDIX C - ARORA HILLS ARCHITECTURAL CONTROL COMMITTEE CHARTER (ACC)

A. Function: The primary function of the Arora Hills Architectural Control Committee ACC) is to encourage architectural harmony and to ensure that all property owners adhere to the Community Standards and Guidelines. No structure or improvement shall be erected or altered until the approvals described in this document have been obtained.

B. Scope of Responsibility: The ACC will also review all property owners' improvements, including alterations and modifications to structures (even after initial construction is complete), limited to improvements visible from street or neighboring residences including, but not limited to walls, painting, renovations and landscaping. Approval by the ACC does not relieve an owner of the obligation to obtain government approval(s).

C. Enforcing Powers: Should a violation occur, the Association has the right to such injunctive relief, which may require the owner to stop, remove, and or alter any improvements in a manner that complies with the Community Standards and Guidelines and approvals granted by the ACC.

D. Limitations of Responsibilities: The primary goal of the ACC is to review applications and determine if the proposed improvement(s) conform to the Community Standards and Guidelines. The ACC does not assume responsibility for any construction, including, but not limited to, the following:

- Structural adequacy, capacity, or safety features.
- Non-compatible or unstable soil conditions, soil erosion, etc.

- Compliance with any and all building codes, safety requirements, and governmental laws, regulations or ordinances.
- The performance or quality of work of any contractor.

E. Committee Members: The ACC shall consist of individuals appointed by the Declarant, or subsequently, by the Board of Directors. The ACC may, but shall not be required to, consist of the Declarant, an architect, a landscape architect, and/or property owner(s).

F. Review Policies: The ACC reviews each Architectural Review Application and either grants approval, grants approval with stipulations or denies approval and returns one set of documents with comments. The applicant shall be notified of the decision of the ACC within forty-five (45) days. In the event the ACC fails to advise the applicant by written notice within forty-five (45) days of receipt of a complete application, the applicant may give the ACC written notice of such failure to respond, stating that unless the ACC responds within ten (10) days of the receipt of such notice, approval shall be deemed granted. The ACC may deny approval if the application is incomplete. Revised applications shall be reviewed in the same fashion as the initial application. An application may be withdrawn without prejudice, provided the request is made in writing and filed with the ACC prior to review of the application.

G. Variances and Exceptions: All requests for variances and exceptions to the Community Standards and Guidelines must be made in writing. Any variance and exceptions granted shall be considered unique and will not set precedence for future variances or exceptions.

H. Construction Observations and/or Inspections: The ACC or a designated individual may make periodic observations and/or inspections to verify compliance of the improvements with the approved applications. To ensure compliance, the ACC is empowered to notify homeowners of violations of the Community Standards and Guidelines and to refer such violations to the Managing Agent or Board of Directors for enforcement of the Community Standards and Guidelines, including an action in a court of law.

I. Waiver and Additional Requirements: The Community Standards and Guidelines have been adopted to assist property owners and the ACC. However, when deemed appropriate by the ACC, the ACC has the right to waive some or all the Community Standards and Guidelines for any proposed improvement(s).

SECTION II - RULES

2.1. RULES – CLUBHOUSE RENTAL PROCEDURES AND USAGE RULES

This Arora Hills Homeowner's Association Clubhouse Rental Procedures and Usage Rules ("Rules") includes these Rules, Appendix A-Clubhouse Rental Rates, Appendix B- Alcohol Use Policy, Appendix C - Clubhouse Rental Application, Appendix D-Inspection Checklist, and Appendix E-Nonprofit Rental Policy.

A. **Availability** - The Clubhouse Room(s) can be rented by the following people for personal resident use such as private parties (NOT INTENDED FOR HOMEOWNER SPONSORED THIRD PARTY USE WITHOUT WRITTEN COMMITTEE / MANAGER APPROVAL; e.g., Scouts, Little League, Religious organizations).

1. Arora Hills members - these are homeowners in **ARORA HILLS HOMEOWNER'S ASSOCIATION**; and ALL members must be current in their assessments.

2. Renters - these persons live in the **ARORA HILLS COMMUNITY** and rent from members. The member from whom the renter is renting from must be current in their assessments.

3. Qualified Community groups or Non-profit entities (as defined in the Non-profit Clubhouse Rental Policy attached in Appendix E) in Clarksburg.

B. **Applications**

1. Applications for renting the community center can be obtained from the onsite manager. Appendix A is the rental application.

2. Each function is allowed a 4-hour time slot to include set-up and clean-up. *Note that rooms are not available past 11:00 p.m.*

3. Clubhouse Rentals are taken on a first-come, first-served basis. Management recommends that the office be contacted to confirm that a proposed rental date is open before an application is submitted.

4. Clubhouse Renters must submit a completed application and check to cover all rental costs for set-up, decorating, time for the event itself and cleanup afterwards (together called "the rental period"), to onsite management to reserve the clubhouse for the date and time requested. The Association does not accept rental requests less than 2 weeks from the desired date. The clubhouse will not be reserved for the applicant until the full application and check has been submitted. The check should be made payable to **"ARORA HILLS HOMEOWNER'S ASSOCIATION."**

5. **Use of Alcohol – separate insurance required**. If the proposed rental will include the use of alcoholic beverages, the applicant must provide (a) a copy of an insurance policy that includes Host Liquor coverage or any similar insurance coverage that names the Association as an additional insured and is approved by the onsite manager and (b) initials the indemnification agreement in the rental application that will hold the Association, its directors, officers, agents, employees and members harmless from any and all liability that may in any way result from the service of alcoholic beverages which is set forth within the rental application (See Appendix B). Failure to secure host liquor liability coverage may result in denial of future use of the Clubhouse for rentals.

6. After receiving a completed application, the onsite manager will schedule the facilities. If the application is approved, the onsite manager will confirm the reservations within 48 hours of receiving the application.

7. Cancellations made within ten (10) calendar days of the activity are subject to a cancellation fee listed in Appendix A.

8. Once approved, the member reserving the clubhouse will be notified to schedule a pre-rental walk-through at the Clubhouse, typically the week preceding the rental event. At the walk-through the member will be advised of rental procedures and given a key-fob which has been pre-scheduled for use during the specific rental period only. The key-fob will not work outside of the rental period for access the clubhouse.

9. The Board, its committees, its sub-association boards, and their committees are not required to submit a written application when utilizing facility for an Association sponsored activity. The president (or chairperson) of these groups can contact the onsite management office to schedule the room(s) usage at the Clubhouse. These groups will not be charged for using the community center.

10. The Board, its committees, its sub-association boards, and their committees may schedule their recurring meetings for a calendar year. *Note: In case of a conflict, prescheduled Association activities have priority over private events*.

C. **Using the Clubhouse**

Introduction: The key-fob will only work to open the Clubhouse door at the start of the rental period.
All users should review the Clubhouse Inspection Checklist (see Appendix D attached) before using the facilities to ensure that the center is in good condition. Users should document [report] any discrepancies with photographs and a written report on the Clubhouse Inspection Checklist (date, time, conditions and leave in the drop box after the rental). For emergencies, please contact Comsource Management at 301-924-7255.

Please note: ***Videotaping. For security reasons,*** *the Clubhouse interior use is subject to videotaping. The tapes of a rental may be viewed after the rental period to validate compliance with the rental period, and no use of alcohol if use is declined.*

Clubhouse Usage Rules

1. One (1) key for the clubhouse facility will be issued per family for the event. Please note that all activities in the Hall(s) are monitored by video camera.

2. The maximum Clubhouse Rental Facility occupancy must not exceed the number set forth on the application and in no event more than 60-70 maximum.

3. All renters shall be entitled to review the Clubhouse Use and Rental Policy and Alcohol Policy before using the Clubhouse. The rules are posted at the Clubhouse.

4. Pets are prohibited except for service dog(s).

5. Smoking is prohibited inside the clubhouse. Smokers must smoke outside and use cigarette butt receptacle on porch area of the clubhouse.

6. Alcoholic beverages or tobacco products must not be sold on the premises. All users must comply with all governing drinking-age laws and requirements and the Alcohol Policy set forth in the Rental Application and Appendix D attached.

7. The pool and pool deck areas are always off limits!!! Clubhouse rental users who do not abide by this rule will forfeit any future use of the Clubhouse.

8. The administrative office is off limits to all users except the management and Board.

9. Users cannot store overnight any items in the community center; all renters will have a 4-hour time slot to allow for set-up, the function and clean-up.

10. Users will have access to cleaning supplies. However, any food, beverages, plates, platters, ice buckets, cups and napkins at the clubhouse belong to the Community Social Community and are not for renters' use.

11. Any balloons used for decoration must be securely attached to a fixture in the clubhouse.

12. **No glitter or confetti is permitted.**

13. All children less than 18 years old must be accompanied by an adult. All users must maintain an adult-to-child ratio of 1 adult for every 8 children.

14. Excessive noise that disturbs surrounding neighbors is not permitted. Clubhouse users will be charged for excessive noise if either: the police charge a clubhouse user for disturbing the peace, or at least two (2) homeowners submit written noise complaints to the onsite manager within 48 hours of the rental.

15. Any illegal activities are prohibited on community common areas / property.

16. The clubhouse cannot be used for any commercial or business activity. Goods and services may not be sold at the clubhouse.

17. All renters and clubhouse users agree to indemnify and hold harmless the Arora Hills Homeowners Association and its directors, officers, employees, agents and members from all losses, liability, damages, and expenses (including attorney's fees) resulting from any injury or damage in any way associated with using the facilities.

18. All renters and community center users agree to comply with the rules and regulations promulgated by the Board of Directors as set forth herein or as modified from time-to-time and displayed in public view within the Clubhouse.

19. Clubhouse rentals can begin at 10:00 am and will be rented in 4-hour time slots. The clubhouse will close at 11:00 pm.

20. The Board of Directors, Arora Hills Committees, and Association functions may use the facility at any time and take priority over resident functions.

21. **In the event of an emergency call Comsource at 301-924-7355 and as appropriate, call 911.**

D. **Clean up and Inspection Rules**

1. Renters are responsible for cleaning the Clubhouse immediately after their activity. Renters are also responsible for complying with all items listed on the Clubhouse Inspection Checklist (See Appendix D).

2. Renters may re-arrange furniture to their liking; however, all furniture must be put back in its original order.

3. **For rentals occurring prior to Memorial Day and after Labor Day all trash from the event must be bagged and must be placed in the square trash bins with lids by the pool entrance. If you have more trash than fits in the bins you must take the excess trash bags with you. Outdoor trash bins are not available between Memorial Day and Labor Day but are for pool use only. For rentals occurring between Memorial Day and Labor Day, renters must bag all trash and remove it from the property. All recyclable items must be removed from the property regardless of the time of year. Recycling will not be picked up from the Clubhouse. Renters must take their recyclable items with them following their rental.**

11. The Clubhouse flooring shall be left in its original condition.

12. The bathrooms shall be left in their original condition.

13. All lights, including those in the restrooms, shall be turned off.

14. All doors and windows must be closed and locked; and shades down.

15. Any supplies in the clubhouse kitchen belong to the Social Committee. Any items used must be replaced.

9. The Clubhouse Inspection Checklist shall be used as a basis for additional fee(s) charged to the renter when the renter is found to be in non-compliance with the above rules.

a). *Ramifications*

Any areas, internal or external, in need of repair as a result of the renter's usage will be repaired at the expense of the renter. Any charge incurred to perform any of the above tasks shall be billed to the renter and shall be placed on the renters or owners assessment account if not paid within 30 days of rental and treated as an unpaid assessment. Any unpaid amount may also be pursued in an Montgomery County small claims court.

b). *Users' Rights*

i. All renters shall be entitled to review the building inspection checklist before assuming responsibility for the Clubhouse.

ii. The Renter will inspect the Clubhouse and fill out a pre-inspection checklist prior to the rental period. Users should document [report] any discrepancies with photographs and a written report on the Clubhouse Inspection Checklist (date, time, conditions and leave in the drop box after the rental). For emergencies, please contact Comsource Management at 301-924-7255

iii. Onsite staff will inspect the room(s) within 48 hours after the rental period. Staff will ensure that the renter has complied with all items on the Clubhouse Inspection Checklist.

iv. Renters not complying with the Clubhouse Inspection Checklist will be subject to special usage fees as indicated on the checklist. These fees will be assessed to the homeowner and the homeowner will be notified. Also, if a user fails to clean the center after an activity, the onsite manager will schedule an emergency cleaning. Cleaning costs will be assessed to homeowners' account.

v. Any damage to the facilities, its furnishings, fixtures, or surrounding grounds shall be deemed a violation of this policy. Only persons authorized by the Board of Directors shall make repairs to the facilities. All repair costs resulting from an activity will charged to the homeowner.

SECTION II CONTINUED - APPENDIX A- CLUBHOUSE ROOM RENTAL RATES

Arora Hills Homeowner- A 4-hour time block will be $200; each additional hour (if available) will be $50.00 per hour. Arora Hills Renter - 4 hour time block $300. Hourly Rate $ 75.00 4-hour minimum

*Cancellation Fee: $ 25.00. Cancellation fee only applies if the reservation is canceled less than 7 days from the date of the reservation.

Inclement Weather:

In the event of inclement weather, the Renter may cancel for a full refund or reschedule for a new date and time. Cancellation should be in writing, including email, directed to both the On-Site Manager and the Association's Management Agent via arora_hills@comcast.net and info@comsource.com not later than thirty (30) minutes before the scheduled event.

If there is inclement weather on the date of an event and Renter elects not to cancel, the Association cannot guarantee access to the clubhouse and assumes no liability for injury or damage to persons or property with respect to that event.

Partial Refunds Related to Early Departure: Partial rental fees will not be refunded due to vacating the premises early.

SECTION II CONTINUED - APPENDIX B - ALCOHOL USE POLICY

1. The State of Maryland prohibits the sale, use or possession of all forms of alcoholic beverages by persons who are under 21 years of age. Alcohol may not be possessed anywhere within the Clubhouse, facilities or common areas by anyone who is under the legal drinking age. Any guest who is youthful-looking (e.g. appears to be 23 years of age or younger) wanting to consume alcohol, will be asked to produce proof of age by the server. Valid photo identification is to be provided by the guest.

2. Public intoxication, including alcohol-induced disorderly conduct, property destruction, intimidation or other infringement upon the rights or privacy of others is a violation of this Alcohol Policy and will not be tolerated. If such behavior occurs at an Association sponsored event, the individual will be requested to leave the Clubhouse or common areas and another member or guest may be requested to arrange for safe transportation for such individual. During a private event, the renter is responsible for removing any individuals who are intoxicated and arranging for safe transportation.

3. The Association reserves the right to refuse admittance for any Association sponsored event to any guests who appear intoxicated.

4. During any private event held at the Clubhouse, non-alcoholic beverages and food, with at least coffee or soda and water, must be made available for all guests and invitees during the entire duration of the event.

5. Renters must provide to the onsite manager as part of the application process a copy of an insurance policy that includes Host Liquor coverage or any similar coverage that names the Association as an additional insured and is approved by the onsite manager.

6. Alcohol may not be sold at private clubhouse rentals. This includes having a cash bar or collecting any fee or donation for the party.

7. Alcohol may only be sold at an event sponsored by the Association when a caterer holding a statewide caterer's license or a company with a Montgomery County caterer's license is providing the alcohol. This includes having a cash bar or the Association collecting an RSVP fee or donation to attend an event where alcohol will be served. The caterer's license must be displayed at the HOA sponsored event.

8. Alcohol can only be served at events sponsored by the Association that are open to the public when a licensed caterer is providing the alcohol. This includes events where Arora Hills residents are allowed to bring guests that do not live within the Association. The caterer's license must be displayed at the HOA sponsored event.

9. Alcoholic beverages will only be permitted at an Association sponsored event when specifically authorized by the Association. These events will be restricted to events only open to residents ages 21 and over.

SECTION II CONTINUED - APPENDIX C - ARORA HILLS HOMEOWNER'S ASSOCIATION CLUBHOUSE RENTAL APPLICATION

Agreement Statement: This Clubhouse Rental Application, which includes all terms and conditions of the Arora Hills Homeowners Association Clubhouse Rental Procedure and Clubhouse Usage Rules dated _____, 2016, incorporated herein by reference as if fully stated herein, when signed by Renter and a representative of Arora Hills HOA, shall constitute the entire agreement between the parties hereto, and no variance or modification thereof shall be valid or enforceable except by written supplement addendum executed and approved by the Board of Directors of **Arora Hills Homeowner's Association**.

This agreement between the renter and the association regarding the subject matter stated herein supersedes all prior oral and written agreements, negotiations, understandings and communications regarding such matters.

RETURN COMPLETED APPLICATION TO THE ONSITE MANAGEMENT OFFICE.
23030 Birch Mead Road, Clarksburg, MD 20871 along with check for rental period.

Date requested: _____ Time requested: From: _____ to: _____

User's Name (Please Print): _____

Address: _____

Phone: (H) _____ (W) _____ E-mail: _____

Type of Function (Description of Event): _____

Group Size: Adults: _____ Children: _____

Alcohol Use – subject to Alcohol Use Policy attached as APPENDIX C: Yes_____ (copy of Host Liquor Coverage or similar coverage attached) No_____ _____ (INITIALS).

I HAVE READ AND UNDERSTAND THE ARORA HILLS HOMEOWNERS ASSOCIATION CLUBHOUSE RENTAL PROCEDURES AND CLUBHOUSE USAGE RULES AND AGREE TO BE BOUND BY THEM AS INDICATED BY MY SIGNATURE HEREIN. AS THE RENTER, I AGREE TO INDEMNIFY AND SAVE THE ASSOCIATION AND ITS DIRECTORS, OFFICERS, EMPLOYEES, AGENTS AND MEMBERS HARMLESS AGAINST ANY AND ALL CLAIMS, DEMANDS, LIABILITIES, CAUSES OF ACTION, COST OF EXPENSES (INCLUDING ATTORNEY'S FEES) FOR DAMAGE, INJURY OR EXPENSES ARISING DIRECTLY OR INDIRECTLY FROM OR INCIDENTAL TO THE USE OF THE CLUBHOUSE BY THE RENTER AND/OR THE RENTER'S GUESTS AND INVITEES, INCLUDING THE USE OF ALCOHOLIC BEVERAGES IF APPLICABLE.

Renter's Signature: _____ Date: _____

Rental Fee: _____ Date Rental Fee Paid: _____ Check No. _____

Approved (Onsite Management): _____ /Date: _____

Comment(s)

_____

SECTION II CONTINUED - APPENDIX D- ARORA HILLS HOMEOWNER'S ASSOCIATION

Community Center Inspection Checklist
****Non-compliance minimum charges**

_____	Door and windows closed / locked and window shades down	$25.00
_____	Window sills free of foreign matter including liquid rings and spills	$25.00
_____	All floors [wood, carpet or tile] free from any foreign matter to include trash and stains from spills	$25.00
_____	Room(s)'furniture must be set back to original configuration	$50.00
_____	Walls, windows and pictures free from any tape and/or other foreign debris.	$25.00
_____	Kitchen cleaned & free of all foreign matter.	$25.00
_____	All toilets flushed & bathroom counters cleaned	$25.00
_____	All room and bathroom lights turned off	$25.00
_____	All trash removed from property.	$50.00
_____	No access to swimming pool area	$100.00
_____	No smoking	$100.00
_____	Key-fob not returned	$125.00

Any Renter not complying with any of the above rules may be billed for the usage fees shown above.

Additional Comments: _____

_____

Clubhouse Renter's signature: _____

** These are the minimum fees; if the cost of resolving the issue (e.g., cleaning carpet stain or repairing the floor) is higher than the fee listed, the higher fee will be charged back to the renter.

SECTION II CONTINUED- APPENDIX E - ARORA HILLS HOMEOWNER'S ASSOCIATION NON-PROFIT RENTAL POLICY

Non-Profit Clubhouse Rental Policy

A.Non-profit entities, as defined by IRS Code, based in Clarksburg with the primary function of supporting the Clarksburg Community, Clarksburg Residents, or Clarksburg Programs may use the Arora Hills Clubhouse located at 23030 Birch Mead

Road to hold meetings. The non-profit may use the facility for a maximum of 2 hours per use and no more than 1 time per month free of charge.

B. Non-profit groups may book recurring monthly meetings for the coming quarter based on the calendar year. Group requests must be received no later than the 10th day of the month preceding the beginning of a new calendar quarter. Requests may be emailed, hand delivered, or mailed to the onsite manager but it is the group's sole responsibility to ensure the request is delivered on time. Management is not responsible for lost or late requests or electronic requests that are inadvertently caught in email spam folders or any other reason not listed. Groups which are currently reserved for a specific day and time will be given priority if their request is received by COB on the nearest workday to the 10th of the Month. If the 10th falls on a weekend the request is due by the next business day.

C. A non-profit group can book recurring monthly meetings as outlined above for clubhouse use only during the following times:

1. Monday through Thursday between 5 p.m. and 6:45 p.m.
2. Saturday and Sunday morning with meeting ending no later than 9:45 a.m.
3. Monday through Thursday in the 7 p.m. to 9 p.m. timeframe provided that the room has not been scheduled for use by the HOA Board, HOA Committees, or private rental. However, the HOA reserves the right to cancel these individual or recurring meetings with a 2-week notice for any reason.

D. If a non-profit Clarksburg group wants to meet for longer than 2 hours for a meeting or more than one meeting a month, the charge will be $25 per hour. (50% regular cost).

2.2. RULES – POOL RULES

Introduction: Arora Hills HOA Pools are popular and a special amenity for Owners, Residents and their guests. The pool access process is intended to keep this special amenity available for use by authorized Arora Hills HOA Owners, Residents and their guests.

SWIMMING POOL RULES & REGULATIONS

For the health, safety and welfare of our residents and guests using the swimming pool, the Board of Directors has established the following rules:

A. ARORA HILLS HOA SWIMMING POOL APPLICATION REQUIREMENTS:

1. The first name, last name and age must be listed for EVERY resident requesting a pool access card.

2. Proof of residency MUST be provided with this application for any person 18 years or older whose last name does not appear on the Arora Hills HOA owner records at Comsource Management. Proof of residency can be confirmed with a Maryland Driver's License or other photo identification card from a governmental or educational institution showing your Arora Hills address. Tenants may submit a copy of the rental lease and driver's license showing the Arora Hills HOA address as proof of residency for those named on the lease. If a Maryland driver's license with the property address is not available, a government issued photo identification and two other documents showing the name with the property address may be submitted for review toward proof of residency. New owners may submit a copy of the settlement statement to expedite Pool Access Application processing. Caretaker passes are available by separate application at a fee of $25 to permit a caretaker age 16 or older to bring a member's child(ren) to the pool.

3. The homeowner (and tenant if applicable) must sign the application agreeing (a) to abide by the rules and regulations posted both at the pool and on the Association's website, and (b) certifying that the information provided on the application is accurate.

4. If the unit is rented and the tenant is applying for pool access, the "PART D: Tenant Information Section" on the application must be completed.

5. Only the owner OR tenant can receive pool access ID cards, not both. An owner who assigns access to the pool to the tenant is and remains responsible for the actions of his/her tenant and guests.

B. ADMINISTRATIVE ITEMS:

1. **Pool Members** must be in good standing with Arora Hills Homeowners Association to use the pool. You must be issued an Arora Hills Pool Access ID card and must present it to the lifeguards to be scanned upon entry. If your Access ID card reads inactive, you will not be permitted to enter the pool and you will be referred to the onsite office during office hours which are Monday through Friday 8:30 a.m. to 5 p.m. except Memorial Day, the 4th of July and Labor Day for status.

2. **Children:** No one under twelve (12) years of age is allowed into the pool without being accompanied by an adult (sixteen (16) years of age or older) at all times. Additionally, anyone under the age of sixteen (16) that cannot complete the swim test established by the pool manager must be accompanied by an adult at all times. A maximum of 4 children can be supervised by one adult. Each resident adult is responsible for his/her own children.

3. **Guests:** Each household may bring guests to the pool as follows:

- A Pool Member with a valid Access ID card must be sixteen (16) years of age or older to bring in a guest and must remain at the pool with the guest.
- A Pool Member must bring a guest pass card to the pool to bring a guest(s) to the pool. The guest pass is good for ten (10) guest visits. The guest pass will be scanned and each guest use will be subtracted from the total. You may add guest visits to your guest pass by purchasing an additional ten (10) visits for Fifteen Dollars ($15). This purchase must be made through the onsite office either during open office hours, by mail or use of the drop box via CHECK only [no cash is accepted at the office] payable to Arora Hills HOA for Fifteen Dollars ($15).
- Up to six (6) guests may be brought to the pool on one family guest pass.
- **Party at the Pool**: If a household would like to bring more than six (6) guests (for a birthday party, etc.) they must contact the On-Site Manager at least seven (7) days in advance for possible approval. Approval will be based on the number of guests planned as well as expected pool usage for the proposed day. Extra guests (more than six (6) and if authorized up to fifteen (15)) are (a) permitted at Pool 1 on Birch Mead Road except on holidays and (b) at Pool 2 on weekdays only but excluding any holidays. All guests must sign-in and out at the pool gate and must be accompanied by their host the Pool Member. The hosts, Arora Hills HOA Pool Members, are responsible for the actions of their guests. Advance notice is required so that the pool management company can review staffing needs and add guards if necessary.

4. **Lost Access ID Card(s):** A fee of **FIVE DOLLARS ($5.00)** will be charged for replacement of each lost Pool Member ID card or guest pass *regardless of the reason*. To obtain a replacement Access ID card, email your request to arora_admin@comcast.com and include a list of the names of the Pool Members who need a replacement ID card (and guest pass if needed). You will be notified by email when they are ready for to be picked up. Payment will be to Arora Hills HOA.

C. OPERATIONAL ITEMS:

1. Montgomery County health code regulations for pools require that Pool Member or guests are prohibited from:

a) Introducing dirt, excreta, foaming agents, soap and other extraneous matter into the water;
b) Bringing dangerous objects and material inthe immediate premises;
c) Unsafe acts, both in and out of the water;
d) Entering the pool water if Pool Member or guest exhibits signs of infection or otherwise shown to be a contamination risk;
e) Entering the pool water if Pool Member or guest is not demonstrably Water-Safe or under the Immediate Supervision of a Water-Safe person;
f) Entering the pool water if Pool Member or guest is incontinent unless such individual is clothed in snugly fitting water-proof pants which are designed to prevent the introduction of fecal matter into the pool and are worn over any type of diaper, including swim diapers;

g) Swimming without a Ready-To-Rescue Lifeguard present on the deck of the swimming pool;

h) Bringing any animal, other than registered service animal, onto the immediate premise or allowing any animal to enter the pool water; and

i) Possessing food and beverage on the pool deck in an area other than that established as the designated eating area. This requirement does not include plastic bottles water brought by a Pool Member or guest for personal consumption.

In the event of a conflict between Arora Hills HOA Pool Rules and Montgomery County Pool Rules, the county pool rules listed above shall control.

2. **Authority At the Pool:** The pool management staff (manager, assistant manager, lifeguards, and gate attendants) have absolute authority IN ALL MATTERS PERTAINING TO THE SAFETY, OPERATION AND MANAGEMENT OF THE POOL and to enforcing the pool rules. The manager is in charge of the pool and uses his/her discretion to enforce the rules and regulations to maintain a safe and healthy environment. The staff, due to violation of the rules, may ask a Pool Member and/or guest to leave the pool area for a violation of the pool rules and may deny later admission to the pool for a period they deem appropriate, subject only to the review of the Board of Directors after a report from pool management. "**EMERGENCY SIGNAL"** for clearing the pool is three (3) blasts of the whistle. When this signal is sounded, all swimmers must leave the pool by the nearest ladder or pool edge.

Failure to comply with the rules and regulations by ONE POOL MEMBER (or guest) of a household can result in temporary suspension or complete loss of pool privileges for the ENTIRE HOUSEHOLD.

3. The Board of Directors reserves the right to suspend a pool member's privileges, as authorized, for any violation of these regulations, any architectural or maintenance violation, or any past due assessments.

4. The following are **PROHIBITED AT THE POOL**:

a) Glass or sharp metal objects.
b) Pets.
c) Abusive language and/or loud profane language after request to cease by pool management is not honored.
d) Food (except in designated eating area. This is Montgomery Health Dept. County Code)
e) Alcoholic beverages and/or persons under the influence of alcohol/drugs.
f) Running, pushing, excessive splashing, horseplay, unruly behavior, or any other acts that may endanger other patrons.
g) Wheeled vehicles (except baby carriages, strollers, and wheelchairs).
h) Persons wearing bandages and/or with skin abrasions, colds, inflamed eyes, or other types of possibly contagious infections.
i) Playing, swinging, or sitting on ladders.
j) Sitting, hanging, or diving over the float lines.
k) Climbing, hanging, or playing on guard chairs.
l) Diving.
m) Chewing either gum or tobacco.
n) Smoking.
o. Distracting lifeguards on duty i.e. in the guard chair or working on the pool deck.
p. Prolonged and/or competitive underwater swimming for time and/or distance.
q. Hyperventilation defined as excess rapid and deep breathing.

5. Any unauthorized person(s) found inside the pool enclosure when the pool is closed will lose their privileges for the remainder of the summer and may be prosecuted to the fullest extent of the law.

6. Any person over six years old who defecates in the pool or on the restroom floors will be barred from the pool indefinitely.

7. All persons must take a cleansing shower before entering the pool area, by order of the Montgomery County Health Department.

8. No air mattresses, rafts or floating chairs are allowed in the main pool. The uses of facemasks, snorkels, swim fins, balls, dive sticks and other swimming aides will be left to the discretion of the lifeguards.

9. Only authorized personnel are permitted in the pool office, filter equipment rooms, or on the guard stands. The guard office is for guard use exclusively. It is not to be used by others before or after pool hours.

10. No sunbathing or chairs are allowed near the edge of the pool. (This is determined at the lifeguard's discretion.)

11. Children under 16 must pass the swim test administered by the lifeguards in order to be allowed in depths they cannot stand in. Those that cannot pass the swim test must stay in shallow water. Children in water wings MUST be supervised by an adult within arms' reach in all depths of water.

12. Emergency equipment and other lifeguard equipment are for lifeguard use only.

13. Rest periods /adult swims will be announced at various times during pool hours for participation by those people who are 16 years of age or older. During this time, children are not permitted to swim in the main pool or to sit on the edge of the pool with their feet in the water. Only children ages 2 and under are permitted in the water during adult swim provided that they are within arms' reach of their parent or guardian.

14. The pool may be closed at the discretion of the pool manager in the case of thunder, lightning, rain, health hazard, operational breakdown or temperatures under sixty-five (65) degrees Fahrenheit.

15. Upon entry, lifeguards will check coolers to make sure no alcohol or glass is being brought into the pool.

16. Diaper-age babies must wear rubber pants.

17. Parents must accompany children in the children's pool area, and they are responsible for the child's safety. The children's pool area is not monitored by the guards.

18. Children over 6 years are not permitted in the children's pool area.

19. Arora Hills pools are family pools. Appropriate attire is required at all times.

20. Only swimwear is permitted in the pool and floaties, puddle jumpers and swim vests. No street cloths such as shoes, jeans, etc. are permitted.

21. **Swimming lessons:** Swim lessons may occur during times when the pool is open with prior written authorization from the Board. Swim lessons scheduled outside of open pool hours must also be authorized in writing by the Board and pool management company. Compliance with all county and Arora Hills HOA regulations is required during use of the pool, including, but not limited to (a) the presence of a pool management company guard who is not the person giving lessons, (b) availability of pool manager within the required time-frame and (c) no other use of the pool is permitted i.e. by family members present for the swim lesson session. Swim lessons are limited to Pool Members only.

Swim Team Practices are scheduled during hours and at pools not open for Pool Member use. This time must be coordinated with the pool management company for guard presence and pool manager availability as required by county code.

23. Safety by the Numbers – Signal Color Flags: Activities at the pool will be governed by the number of patrons on the pool deck so that when usage is below 100 (green flag) more play and games will be permitted. When usage is more than 100 and up to 200 some activities will be prohibited and when usage exceeds 200, more activities will be prohibited:

Flag Rules:

GREEN: (up to 100 patrons on the pool deck): small soft balls, small torpedoes, small water guns, noodles, small

floating toys, small kick boards, permitted. Games such as water basketball, marco polo, toss are permitted.
YELLOW: (over 100 patrons and up to 200 on the pool deck): small soft balls, small water guns, noodles, small floating toys permitted, Games such as marco polo.
RED: (over 200 patrons on the pool deck): noodles, small floating toys permitted.

2.3. <u>RULES – ELECTRONIC NOTICE AND VOTING INTRODUCTION</u>: Section 11B-113.1 of the Maryland Homeowners Association Act ("Act") authorizes a homeowners association to provide notice of a meeting or deliver information to an owner by electronic transmission; and Section 11B-113.2 of the Act authorizes homeowners to submit a vote or proxy by electronic transmission.

Therefore, for the convenience, benefit and efficiency of the Association and of the individual owners, the Board deems it necessary and desirable to establish a procedure to permit electronic voting and the electronic transmission of notices;

A**. ELECTRONIC TRANSMISSION OF NOTICES.**

1. The Board may provide notice of a meeting or deliver information by electronic transmission if an owner agrees to receive electronic notices and/or information and the owner signs the attached form titled "Authorization for Receipt of Electronic Notice or Information."

2. In addition, the Board or its authorized agent, must certify in writing that the Association has provided notice of a meeting or delivered material or information as authorized by the owners signed "Authorization for Receipt of Electronic Notice or Information."

3. Notice or delivery by electronic transmission shall be considered ineffective if:
   (a) The Board or its authorized agent is unable to deliver two consecutive notices; and
   (b) The inability to deliver the electronic transmission becomes known to the Board or its agent responsible for sending the electronic transmission.

4. The inadvertent failure of the Board or its authorized agent to deliver notice by electronic transmission does not invalidate any meeting or other action.

B**. ELECTRONIC TRANSMISSION OF VOTES OR PROXIES.**

1**.** The Board hereby authorizes owners to vote electronically or submit a proxy by electronic transmission if the electronic transmission contains information that verifies that the vote or proxy is authorized by the owner or the owner's proxy.

2**.** Electronic voting is merely an alternative form of voting that owners may elect to use. Nothing in this resolution shall prevent an owner from voting in person or through proxy as set forth in the Association's Declaration and Bylaws.

ARORA HILLS HOA, AUTHORIZATION FORM

Authorization for Receipt of Electronic Notice or Information

I/We, _____
being the property owner(s) of _____, which is located within the Arora Hills Homeowners Association, Inc., hereby authorize the Board of Directors, or its agent(s), to provide me/us with notice of any and all affairs before the Arora Hills Homeowners Association, Inc., including notice of meetings.

Email address: _____(print clearly)

[Only one (1) email address should be provided per household for this notice [Primary]]

By our signatures below, we confirm and understand that if our Primary email address changes, we must notify Arora Hills HOA to update our file to the new Primary email address. We understand that if two email notifications are returned, undelivered, our Primary email address may be deleted and we will be sent notifications by U.S. Mail.

Signed by [print name]: _____

Signature: _____ _____
Date

Signed by [print name]: _____

Signature: _____ _____
Date

ORIGINAL SIGNATURES MUST BE RETURNED BY MAIL OR DELIVERED TO:

ARORA HILLS HOA
23030 BIRCH MEAD ROAD
CLARKSBURG, MD 20871

2.4. RULES POLICY ON EXAMINATION AND COPYING OF ASSOCIATION RECORDS

A. BOOKS AND RECORDS - EXAMINATION; COPYING

1. Arora Hills Homeowners Association, Inc. ("Association") books and records are available for examination and/or copying in accordance with the Maryland Homeowners Association Act, as amended from time to time.

2. Books and Records include only existing documents prepared or received by the Association in the ordinary course of its business. The Association is not required to create a new record or to gather information that is not already compiled in an existing document in order to comply with a request for examination or copying of its books and records.

3. Books and Records may be withheld from inspection (except inspection by the person who is the subject of the record, or his/her guardian or designee) to the extent that they concern:
a) personnel records, not including documents setting forth information on individual salaries, wages, bonuses and other compensation paid to Association team members;
b) an individual's medical records;
c) an individual's personal financial records, including assets, income, liabilities, net worth, bank balances, financial history or activities, and creditworthiness;
d) records relating to business transactions that are currently in negotiation;
e) written advice of legal counsel; or
f) minutes of a closed meeting of the Board of Directors or the Board's committees.
g) Violation notices except to the unit owner of the unit violated.

B. PERSONS ENTITLED TO EXAMINE OR COPY

Every lot owner, lot owner's mortgagee, or their duly authorized agent or attorney (collectively, "owner") shall have the right to examine or copy the Association's books and records in accordance with this policy.

C. WRITTEN REQUEST REQUIRED

An owner who wishes to examine or copy the Association's books and records must submit a request in writing by mail, email or delivery to the Association's manager. The request must specify the particular record desired, including pertinent dates or time periods, and be sufficiently detailed to allow the manager to retrieve the record requested. The request also should specify whether the owner is seeking examination of books and records or is requesting copies or both.

D. RESPONSE BY THE ASSOCIATION

1. The Association will determine whether the records requested are subject to disclosure.

2. If the owner requests delivery of a copy of an Association financial statement or minutes of a meeting, the Association will provide the document by mail, email or delivery (i) within 21 days of receipt of the request if the document was prepared within 3 years prior to the receipt of the request, or (ii) within 45 days of receipt of the request if the document was prepared more than 3 years earlier.

3. The Association normally shall respond to a request regarding documents other than those identified in section 4(b) within 30 days after the Association receives the written request. This time frame may be extended if the records requested are so voluminous or otherwise in such condition as to render this time frame unreasonable.

4. In the event a request is denied, a written response will be provided outlining the reason for denial.

5. If some portions of the record requested are not subject to disclosure, the Association will make an estimate of the time needed and expense to redact the information that is not subject to disclosure and will advise the owner of the time and costs involved prior to proceeding to fill the request.

E. EXAMINATION RULES

All examinations of records shall take place at the Association's offices or such other location as the Association designates. No owner shall remove any original records or alter them in any way. An examination of records shall be by appointment only, during the Association's normal business hours.

F. CHARGES FOR REVIEW OR COPYING

1. With the exceptions noted below, an owner requesting review or copying of books and records shall be required to pay a charge for each page reviewed or copied in accordance with the limits authorized under Title 7, Subtitle 2 of the Courts Article of the Maryland Annotated Code. As of October 1, 2015, that charge is $.50 per page. The charge shall be paid by the owner at the time of review of the records or delivery of the copies, unless the Association requires advance payment in his or her discretion, taking into account such factors as the amount of the copying charge, the owner's payment record and other relevant factors.

2. The charge for review and/or copying of forms filed by the Association with the Internal Revenue Service shall be at the rate allowed by the IRS. As of October 1, 2013, that rate is $.50 per page.

2.5. RECORDS RETENTION POLICY in the exercise of its authority, the Board of Directors intends to hereby establish policies and procedures to ensure an organized methodology for retaining books and records for the Association.

The following record retention policy is in effect as of the date of enactment and it shall supersede any current regulation of record and/or previously adopted rules on the same subject matter:

1. **Governing/organizational documents (including Bylaws, all amendments, and minutes), meeting minutes (both Board of Directors and Lot Owners Association)** shall be retained permanently by the Association. Copies of the Governing/organizational documents shall be retained by the Association's Managing Agent, the Site Office, and Legal Counsel.

2. **Financial, tax, and insurance records** shall be maintained by the Managing Agent for the most recent 3 years, after which time they shall be stored at the Site Office until destruction after 7 years from the date of the document.

3. **Contractual records** shall be maintained by the Managing Agent, including bids, signed contracts, and vendor invoices, during the contract term and for 7 years past the expiration or termination of the contract. Documents more than 3 years old may be transferred to the Site Office.

4. **Proxies and ballots** for or used at Association meetings shall be maintained for one year following the adjournment of the meeting.

5. **Warranty records** shall be maintained by the Managing Agent and/or Site Office for 3 years past the expiration of the warranty.

6. **Homeowner files** shall be maintained by both the Managing Agent and the Site Office as working files. Homeowner files superseded by a change in ownership shall be sent to the Site Office and retained for 3 years, except records associated with a waiver of rules for modifications to lots shall be retained as long as the modification exists.

7. **Personnel Records** shall be maintained for 7 years after termination of the employee.

8. **General Correspondence from the Association to the Owners and Residents** such as newsletters and letters to all owners shall be retained permanently as part of the historical record. Letters to individual owners shall be filed with that individual's lot file.

9. **Correspondence between the Association and the General Public** shall be maintained for a period of one year from the date of receipt or the date mailed. The Association is not under any obligation to retain junk mail, direct mail or advertising mail.

10. **Electronic Copies.** Where possible, records shall be stored electronically rather than in paper files. Although working files may utilize Microsoft Office formats, Adobe Acrobat (.pdf) versions of Association documents, including signatures, is preferable for contracts, correspondence and other official documents. Backup copies of official records shall be stored on clearly labeled, removable media such as a CD or DVD, which are less subject to errors over time (or loss) than flash drives or external drives. Note that hard drives may fail and buildings may burn. Copies shall be stored off site.

11. **E-mails, Spreadsheets, and Databases.** Although e-mails, spreadsheets, etc. may be viewed as disposable, working files, from a legal perspective they may be considered to be records of the Association, and shall be created and managed with the same professionalism and respect as more formal written correspondence.

12. **Secure Destruction.** Records being disposed of shall be completely destroyed by shredding to avoid compromise of any confidential records.

13. **Disposal of Computers.** Deletion of files from computers does not destroy them. If computers used at the Site Office, by the Managing Agent, or by board members are disposed of, records pertaining to the Association must be destroyed to avoid compromise of sensitive information. The hard drives must be wiped using special software or destroyed.

2.6. RULE: COLLECTION POLICY

2.6.1. ROUTINE COLLECTION OF ASSESSMENTS/ BILLING PROCEDURES

A. **Fiscal Year.** Each fiscal year's annual assessment shall be due and payable in advance, in monthly installments, on or before the first (1st) day of each month. ("Due Date"). The fiscal year shall be from January 1 to December 31 of each year. Unless otherwise determined by the Board, all special or additional assessments, shall, unless otherwise specified in the notice, be payable in full with the next periodic installment.

B. **Notices.** All documents, correspondence, and notices relating to assessments or charges shall be mailed or delivered to the address which appears on the books of the Association and it is the responsibility of non-resident Owners to provide current addresses to the Association's Managing Agent in writing.

C. **Non-receipt of Documents.** Non-receipt (or late receipt) of an assessment invoice or coupon booklet shall in no way relieve the Owner of the obligation to pay the amount due by the due date. Questions regarding assessments may be directed to the Association's Management Agent.

D. **Coupons.** Unless delinquent accounts have been referred to counsel, Owners shall make payment to the Arora Hills Homeowners' Association, Inc. and such payment shall be mailed to the Association's Management Agent.

E. **Payment Coupons.** Payments shall be accompanied by a payment coupon provided by the Management Agent. Owners may also set up direct debit/payment through the Association's Management Agent. Non-resident owners must include the property address on the check. Replacement coupons may be obtained from the Management Agent.

F. **Charges.** The term "Charges" shall include, without limitation, late fees, interest, returned check fees, administrative costs associated with mailing and serving delinquent Notices, charges and/or fines imposed for violations of the Association's Governing Documents and/or Rules and Regulations, and all costs and attorney's fees relating to collection efforts that are assessed or incurred pursuant to the Association's Governing Documents. Charges shall be collected in the same manner as an assessment or in such manner as shall be determined by the Board.

2.6.2. REMEDIES FOR NON-PAYMENT OF ASSESSMENTS

A. **Late Fees and Interest**. If payment of the any assessment not paid within fifteen (15) calendar days when due shall be subject to a late charge of fifteen dollars ($15) or one-tenth of the total amount of any delinquent Assessment, whichever is greater, provided the charges may not be imposed more than once for the same delinquent payment. Moreover, any Assessment not paid within thirty (30) days after the due date shall bear interest from the due date at the maximum interest rate allowed by Maryland law per annum, and the Board shall have right to assess a late charge, in accordance with Section 4.8.1.

B. **Acceleration.** If any assessment is not paid by the thirtieth (30th) day of the Due Date, the Board shall have the right to declare the entire balance of the Annual Assessment and accrued interest thereon to be immediately due and payable with notice of exercise of such right being waived by Owner.

C. **Returned Checks.** If a check is returned for insufficient funds, a Thirty-Five Dollar ($35.00) returned check fee, or the maximum amount allowed by Maryland law, shall be applied to the Owner's account. If a check is returned and assessments are not timely paid, as set forth in Section IIA, above, Late Fees and Interest will be imposed. If the Association receives two or more checks returned for insufficient funds in any single fiscal year from an Owner, the Board may require all future payments to be made by certified check, cashier's check or money order for the remainder of the fiscal year.

D. **Late Notice.** A "Late Notice" may be sent to Owners who have not paid assessments or charges, in full, by the fifteenth (15th) day after the Due Date. Non-receipt of such notice does not relieve the Owner of his financial obligation to pay the Charges associated with the Owner's account, including, but not limited to late fees, interest, attorney's fees and other costs of collection incurred by the Association.

E. **Legal Referral.** If payment in full, of any assessment or Charge is not received by the Association by the sixtieth (60th) day after the Due Date, the account may be referred to legal counsel for the Association for collection of same. Nothing herein shall prevent the Management Agent or the Board from referring a delinquent account to counsel at any time deemed appropriate.

F. **Lien.** In accordance with the Maryland Contract Lien Act, if an Owner's account remains delinquent for more than thirty (30) days, the Association, through its Managing Agent or counsel, may send a Notice of Intention to Record a Lien to the delinquent Owner. If payment in full of the amount due is not received within thirty (30) days after the Notice of Intention to Record a Lien has been served on the Owner, a Statement of Lien shall be filed which shall include all assessments (including accelerated assessments) and Charges owed, including, but not limited to postage and attorney's fees and costs incurred in collecting the amount owed and filing the Lien. Delinquent Owners are responsible for all costs and attorney's fees associated with filing and releasing any such liens.

G. **Civil Suit.** If payment in full of all amounts owed, including accelerated assessments, is not received by the time the Lien is recorded, a civil suit may be filed personally against the delinquent Owners.

H. **Further Legal Action.** If an account remains delinquent after the filing of a lien and/or civil suit, counsel for the Association shall take other appropriate legal action to collect the amounts due which may include, without limitation, garnishment of wages, rent and/or bank accounts, and the attachment of other vehicles and other assets.

J. **Foreclosure.** If a lien remains unpaid, the Board may authorize legal counsel for the Association to file a suit to enforce the lien and foreclose on the Lot.

K. **Costs and Fees.** All costs and attorney's fees incurred by the Association as a result of collection activity on a delinquent account or violation of the Governing Documents by an Owner or the Owner's tenants, guests, family, residents, employees, agents, lessees or licensees, shall be specifically assessed or charged against the Owner.

L. **Approval of Payment Plans/Settlement**. The Board shall authorize a member of the Board or the Management Agent to approve payment plans and settle accounts.

L**. Application of Payments**. Payments received from an Owner shall be credited to currently outstanding amounts and the amount owed for each category below shall be paid in full before payment is applied to the next category in the following order:

1. Charges for attorney's fees and court costs.
2. All returned check charges, postage, and costs.
3. Fees or other charges imposed for rules violations and damages.
4. Late fees and interest.
5. Annual and special assessments applied first to the oldest amount owed.

2.6.3. FINANCIAL HARDSHIP

A. The Board may in its sole discretion, but is in no way obligated to, grant a waiver of any provision herein upon written request by an Owner alleging a personal or financial hardship.

B. Such relief granted shall be appropriately documented in the records of the Association.

2.6.4. REVOCATION OF PRIVILEGES

A. **Voting.** Any Owner that is shown on the books or management accounts of the Association to be more than sixty (60) days delinquent in any payment due to the Association will be ineligible to vote, either in person or by proxy.

B. **Other Privileges.** The Association reserves the right to suspend or revoke additional privileges of the Owner including, but not limited to, suspension of the right of use of any Recreational Facilities located on any HOA Area during any period in which the Owner is in default in the payment of any assessment levied by the Association. These rights may also be suspended for a period not to exceed ninety (90) days for an infraction of published Rules and Regulations.

C. **Reinstatement.** The revocation of the right to vote and other privileges shall be reinstated within fifteen (15) days after all amounts outstanding have been paid in full.

2.7. SOCIAL COMMITTEE CHARTER

Purpose: The primary responsibility of the Social Committee is to build a sense of community through a series of year round social events. The Committee is to develop, plan, and execute events that will help build a sense of Community. The Committee will establish annual calendar of events, estimated budget needs per event, and present their recommendation(s) to the Board for appropriation of funds and eventual event approval.

A. **Organization**

(1). Membership:

a). Members of the Committee may be homeowners or residents, appointed by the Board of Directors.

b). Number of Members.

(i) The Board of Directors will endeavor to appoint a Committee comprising a number of at least three (3) homeowners or residents of the Association.

(ii) Total membership shall not exceed seven (7) without approval of the Board of Directors.

c.) All members of the Committee are appointed by, and will serve at the pleasure of the Board of Directors.

d.) If fewer than three (3) homeowners or residents are willing to serve on the Committee, the Board will perform all functions and duties of the Committee as time may permit.

e.) A member of the Board of Directors shall be appointed as a liaison to the Committee in order to assist the Committee and to provide updates of the Committee activities, if necessary, beyond the Committee's monthly report.

f.) Chairperson:

(1) The Chairperson shall be a homeowner appointed by the Board, and serve a one-year term.

(2) Functions of the Chairperson include:

(a) Coordinate and supervise the committee activities and meetings to assure that committee responsibilities are met;

(b) Encourage and support participation by all committee members, and ensure that such persons are kept advised of committee activities;

(c) Prepare written committee reports for submission to the community association manager, on behalf of the Board, no later than ten (10) days prior to each Board meeting;

(d) Familiarize the committee with its terms of reference; and

(e) Attend Board meetings *in an advisory capacity* concerning committee-proposed motions.

(f) Unless, and to the extent that developments warrant, oral committee reports at regular Board meetings are to be discouraged, in favor of submitting a monthly written report.

(g) Written committee reports shall identify all members attending the meeting; the date, time, and place of the monthly meeting; a summary of the committee's discussion; and any recommendation(s) for specific Board action.

(3) Vacancies: The Chairperson shall serve at the discretion of the Board of Directors. The membership of the Committee may vote to recommend to the Board the removal of the Chairperson with or without cause. Vacancies created by removal, death, or by resignation of the Chairperson, shall be filled by an acting Chairperson selected by the Committee membership until the Board makes an appointment.

g.) Board Liaison: The Board of Directors shall appoint a member of the Board to serve as a member of, and as the Board's liaison to, the committee, and to provide updates of the committee activities, if necessary, beyond the committee's monthly written report.

B. **Meetings**

1. The Committee shall meet as many times as necessary to monitor, develop and/or modify plans affecting the Association's Social Functions.

2. All meetings of the Committee shall be open to attendance by members of the Association; non-committee members may participate in accordance with law at the discretion of the Chairperson, but may not vote.

3. The Committee is responsible for advising the Board of Directors and Management Agent of the date, place, and time of each meeting at least seven (7) days in advance of each meeting.

4. Quorum. A majority of appointed members must be present at a Committee meeting for a quorum to be reached and business to be conducted.

5. Voting. The affirmative vote of a majority of the voting members present at a meeting where a quorum is achieved is required to make any decision pursuant to the authority contained in this resolution.

C**. Vendor Contracts**

1. THE COMMITTEE SHALL HAVE THE AUTHORITY TO SOLICIT VENDORS FOR ASSOCIATION SOCIAL EVENTS HELD DURING THE COURSE OF A YEAR. THE COMMITTEE SHALL HAVE NO AUTHORITY TO ENTER INTO VENDOR CONTRACTS ON BEHALF OF THE ASSOCIATION. HOWEVER, VENDOR CONTRACTS IN AN AMOUNT LESS THAN $2,500.00 MAY BE EXECUTED BY THE ASSOCIATION'S MANAGEMENT COMPANY PURSAUNT TO THE AUTHORITY GRANTED TO THEM IN THEIR MANAGEMENT CONTRACT WITHOUT PRIOR BOARD OF DIRECTORS APPROVAL.

2. VENDOR CONTRACTS IN EXCESS OF $2,500.00 BEING CONSIDERED BY THE COMMITTEE SHALL BE SUBMITTED TO THE BOARD OF DIRECTORS FOR REVIEW AT LEAST FORTY FIVE (45) DAYS PRIOR TO THE DATE OF THE SOCIAL EVENT. THE COMMITTEE SHALL ENSURE THAT THE VENDOR BEING CONSIDERED MAINTAINS ADEQUATE INSURANCE INCLUDING WORKERS COMPENSATION PRIOR TO SUBMITTING THE CONTRACT TO THE BOARD.

3. IF THE VENDOR CONTRACT IS APPROVED BY THE BOARD, THE COMMITTEE SHALL SUBMIT THE CONTRACT TO THE ASSOCIATION'S MANAGING AGENT FOR EXECUTION AT LEAST THIRTY (30) DAYS PRIOR TO THE DATE OF THE SOCIAL EVENT.

4. FOR ANY EVENT INVOLVING FOOD THAT IS NOT STORE BOUGHT, INDIVIDUALLY PACKAGED AND NOT SUBJECT TO HEATING, THE EVENT SPONSOR MUST PROVIDE A CONTRACT FROM A LICENSED AND INSURED FOOD PREPARER, A FOOD LICENSE AND CERTIFICATE OF INSURANCE NAMING THE HOA AS AN ADDITIONAL INSURED. NO SPONSOR WILL BE REIMBURSED FOR OR PERMITTED TO USE ANY FOOD PREPARER WITHOUT THE ABOVE REQUIREMENTS HAVING BEEN PROVIDED, REVIEWED AND APPROVED IN ADVANCE.

D. **Reporting:**

1. The Chairperson of the Committee shall be available to attend meetings of the Board of Directors and present a report of the committee's activities. The Chairperson may, if otherwise unavailable, appoint another member of the Committee to attend Board Meetings to present such reports.

E. **Removal of Members:**

1. A member of the Committee will be deemed to be automatically removed from the committee if, at any time, the member's assessments remain unpaid for a period exceeding thirty (30) days.

2. A member of the Committee will be deemed to be automatically removed from the committee for failure to attend three (3) consecutive committee meetings or failure to attend four (4) committee meetings, including any special purpose meetings, during any twelve (12) month period. The Chair of the Social Committee may, by and through special consideration, waive this directive for any given member.

3. A member of the Committee may be removed from the committee at any time at the sole discretion of a majority vote of the Board of Directors.

2.8. Facebook Page Terms of Use Policy

A. This Facebook Page (the "Page") is maintained by Arora Hills Homeowners Association, Inc. (hereinafter referred to as Association"). By liking this Page you agree to be legally bound by the terms and conditions that follow (the "Terms of Use") as the Association's Board of Directors may modify them from time to time. These Terms of Use apply to your use of this Page and constitute a legal contract between you and Association, and by accessing or using any part of the Page you represent and warrant that you have the right, power, and authority to agree to and be bound by these Terms of Use. If you do not agree to the Terms of Use, or if you do not have the right, power, and authority to agree to and be bound by these Terms of Use, you may not use the Site.

B. Posting Comments

The Association may permit the posting of comments on the Page, where you can post messages to be read and possibly responded to. The purpose of allowing comments on the Page to facilitate the dissemination of information related to Association business, to promote community relations, to serve as a social networking area for neighbors to meet and communicate, and to encourage constructive discussions related to the operation of the Association. You agree that you are responsible for any posts you make, and for any consequences thereof. You agree that you will use this service in compliance with the Association's Terms of Use Policy. The Board of Directors or the Association's General Manager reserves the right, but shall have no obligation, to investigate your use of the of the Page in order to (a) determine whether a violation of the Terms of Use has occurred or (b) comply with any applicable law, regulation, legal process or governmental request.
The Association and the Board of Directors do not endorse, support, represent or guarantee the truthfulness, accuracy, or reliability of any communications posted on the Page nor do they endorse any opinions expressed on the Page. You acknowledge that any reliance on material posted via the Page will be at your own risk.

C. Message Board Content Policy

The Page is a free service to allow the Association to post information about Association business and activities and for communication among members of the Association. The Board of Directors believes that the Page increases the availability of information, community relations, encourages healthy debate, and makes possible new connections between neighbors. The Board of Directors respects our resident's responsibility for the content they choose to share. In order to uphold these values, the Board needs to curb abuses that threaten our ability to provide this service and the freedom of expression it encourages. As a result, there are some boundaries on the types of content be posted on the Page. The boundaries the Board of Directors has defined are those that both comply with legal requirements and that serve to enhance the service as a whole. The Page consists of a written content provided the Association and by our users (the "Content"). You are responsible for all Content that you post on or transmit through the Page. The following Content is prohibited:

- Content involving nudity, including nudity or partial nudity of children of any age
- Copyrighted material and trademarks that are used without the express permission of the owner.
- Pornographic or obscene Content.
- Content that exploits children or minors.
- Content that discloses or contains any personally identifying information beyond a first name about any person who appears to be under the age of 18
- Content that the Board of Directors and/or a appointed moderator have reason to believe was posted for malevolent purposes, including libel, slander, defamation, misrepresentation, harassment or cyberbullying.
- Content that may be deemed grossly offensive to the Board of Directors community, including, but not limited to, blatant expressions of bigotry, prejudice, racism, hatred or profanity
- Content promoting or providing instructional information about illegal activities Content that transmits or contains viruses, spam, corrupted files, or any similar element.
- Content that the Board of Directors determines is false or misleading, or had the intent of creating discontent amongst the members of the Association. There are other forums for such communication.

The Board of Directors or an appointed moderator will examine the Page's Content from time to time, and the Board of Directors and/or an appointed moderator maintain the absolute right (though not the obligation) to remove any Content that does not meet the standards listed above, in either's sole discretion. The Board of Directors also reserves the right to terminate your access to the Page if you fail to abide by these Terms.

The Board of Directors are not responsible for the loss, deletion, failure to store, mis-delivery or untimely delivery of any Content submitted to or transmitted through the Page.

D. Our Rights

The Board of Directors and the Association's Community Manager maintains the right to do any of the following any time, with or without prior notice:

- restrict, suspend, or terminate your access to all or any part of our services;
- change, suspend, or discontinue all or any part of our services;
- refuse, move, or remove any Content;
- refuse to register any user name that may be deemed offensive;
- establish general practices, fees and policies concerning the Message Board and the services we provide.

SECTION III - ENFORCEMENT PROCEDURES

3.1. INTRODUCTION

The procedures set forth in this document are intended to ensure that due process is provided to Owners and Residents with regard to enforcement of the Arora Hills Homeowners Association Declaration of Covenants, Conditions, Restrictions and Easements (“Declaration”) and Master Rules (collectively, “Governing Documents”).

3.2. ENFORCEMENT PROCEDURES

A. Initiation of a Governing Documents Violation Process ("Violation"). A Violation may be initiated through an inspection by Management, a complaint by an Owner or Resident, upon referral by the Board of Directors or Covenants Committee, or as a result of a resale inspection order.

(1) After the initiation of a Violation that may be observable, Management will undertake the following steps to determine if the complaint has merit:

(a) During normal business hours, Management may inspect the location of the alleged Violation and take photographs. If the alleged Violation is reported to occur after normal business hours, Management may make a request of the Board of Directors or the Covenants Committee to inspect the reported location.

(b) Management shall review the Owner's Homeowner Electronic File for previous complaints of the same nature or any previous actions taken by the Association in regard to the current complaint.

(c) Management may communicate with any complainant for the purpose of requesting written testimony from the complainant or other potential witnesses suggested by the complainant.

(2) After the initiation of a Violation that may not be readily observable, one of the following conditions will be required to determine if the complaint has merit:

(a) Confirmation of the observation of the alleged Violation by a member of the Management team or a member of the Board of Directors or Covenants Committee.

(b) Receipt of complaint from two or more unrelated complainants who reside at different addresses in the Association or who own different homes in Arora Hills.

(c) Receipt of a complaint from an Owner/Resident and the police.

(d) A complaint that may otherwise require a response under state or federal law.

B. Notice of Violation and Opportunity for a Hearing**.** If a complaint is deemed to have merit, then the Owner responsible for the Violation will be sent a notice of violation and opportunity for a hearing ("Notice"). The Notice must specify the following:

(1) A description of the alleged Violation;

(2) Any action required to abate the Violation; and

(3) That the Owner is entitled to request a hearing by submitting a written request for a hearing within 10 days of the date of the Notice.

The Notice may provide the Owner a period of time that if the Violation is abated no sanctions will be imposed, as determined by the Board of Directors, the Covenants Committee or the Managing Agent.

The Notice shall be sent by at least regular mail.

C. Notice of Hearing. If a hearing is requested by the Owner in a timely manner, or if the Board of Directors elects to set a hearing on its own, the Covenants Committee, for all Violation reviews within its purview listed in Paragraph III below, or the Board of Directors, as to all matters not otherwise included within the purview of the Covenants Committee listed in Paragraph III below, , will schedule a hearing and Management shall send the Owner, by regular mail, written notice of a hearing to be held by the Covenants Committee or Board of Directors, as applicable. A copy of the Notice must be placed in the Owner's Homeowner Electronic File. The Notice shall contain:

(1) A description of the alleged Violation;

(2) The time and place of the hearing, which time may not be less than 10 days from the giving of the Notice;

(3) An invitation to attend the hearing and produce any statement, evidence, and witnesses on the alleged violator's behalf; and

(4) A statement indicating that monetary, including fines and other sanctions, may be imposed resulting from the hearing.

D. Proof of Notice**.** Prior to the effectiveness of any sanction, the following shall apply:

(1) A copy of the Notice and invitation to be heard must be appended to the official minutes of the hearing, along with a written statement by the member of Management or member of the governing body who delivered the Notice, indicating the date and manner of delivery; and

(2) The Notice requirement shall be deemed satisfied if the alleged violator appears at the meeting.

E. Hearings. Hearings shall be held before the Covenants Committee for violations within their purview as listed in Paragraph III below. All other hearing shall be held before the Board of Directors. At the beginning of the hearing, the presiding officer should explain the rules and procedures by which the hearing shall be conducted. It shall be incumbent upon each member of the Covenants Committee or Board to make a determination as to whether he or she is able to judge a particular case in a fair and impartial manner. Any member unable to do so shall disclose this fact and shall not participate in the hearing. The following rules of conduct and rights of the Owner of the lot that is the subject of the Violation (hereafter referred to as "Respondent") shall apply at all hearings:

(1) Right to have a Designee**.** The Respondent may designate, in writing, another person to represent him or her for the purpose of participating in the hearing. Respondent's designee may not be the tenant of Owner.

(2) Absence of the Respondent**.** The Hearing may be held in the absence of the Respondent or his designee if the Respondent or designee fails to attend the hearing, or the Covenants Committee or Board of Directors, in their discretion, may schedule a future hearing on the case.

(3) Evidence and Witnesses**.** The Respondent or the Respondent's designee shall have the right to introduce evidence and bring witnesses as they see fit to state their case. The Respondent or the Respondent's designee may question any witness or any member of Management present at the hearing regarding the Violation and documentation or proof.

(4) Rulings**.** After the hearing, or if no hearing is timely requested**,** the Covenants Committee or Board of Directors may take any of the following actions:

(a) Rule that a Violation exists and apply appropriate sanctions, including the imposition of fines.

(b) Rule that a Violation exists and order that specific sanctions, including the imposition of fines, shall apply if the Respondent fails to abate the Violation after an additional time period.

(c) Rule that a Violation does not exist.

(d) Rule that additional information is required and order the hearing to be rescheduled.

(5) Responsible Party**.** In any case where sanction(s) are imposed and/or a further requirement to abate the source of the Violation is made, the responsible party shall be the Owner of the property associated with the complaint, whether the person, or persons, causing the Violation may be the Owner, a tenant of the Owner, guest of the Owner, or the family of the Owner.

(6) Notice of Decision**.** The Owner shall be served written notice of the decision made at any hearing by regular mail. The decision should address 1) decision on the Violation, 2) what sanctions will be impose if a Violation is found, and 3) what sanction(s) may be imposed if the Violation continues or occurs again. A copy of all written communication shall be placed in the Owner's Homeowner Electronic File. All decisions are final, subject to Montgomery County law.

3.3. COVENANTS COMMITTEE PURVIEW. "Covenants Committee purview" as referenced in these procedures shall include violations of Master Rules and Declaration regarding lot maintenance, and changes or modifications to a lot made without ACC review and approval where required. Responsibility as applicable for all other matters not otherwise listed above, including but not limited to violations impacting health, or safety of Association residents, criminal matters, noise issues, neighbor-to-neighbor disputes impacting the Association, or enforcement of other governmental matters shall remain with the Board of Directors.

3.4. ENTERING A LOT TO REMEDY A VIOLATION. Nothing in these procedures shall limit the Association's ability to enter a Lot to remedy any Violation of the Owner's obligation to maintain the Lot under Article VI, Section 6.1 of the Declaration.

3.5. FINES

A. Violations of a non-recurring nature.

If a committee determines that there is sufficient evidence of a violation, it may levy a fine not to exceed $100.00 for the original occurrence of each violation. In the event of a second violation of the same nature, the committee may levy a subsequent fine not to exceed $125.00. In the event of a third violation of the same nature, a further fine not to exceed $150.00 may be levied. If further violations of the same nature persist beyond a third violation, a fine not to exceed $200.00 may be levied. Written notice of the committee's determination and any fine(s) shall be provided to the owner and if applicable to any tenants, residents or guests.

Examples of fines of a non-recurring nature include, but are not limited to, the following:

(1) A lot use violation - including permitting nuisances to arise (i.e., noise, odors, debris, trash, etc.), a failure to conceal trash/recycling containers on non-collection days and animal nuisances (i.e. unreasonable barking, unleashed outside, etc.)

(2) A common area violation – including a violation of established rules and regulations governing the use of Arora Hills common areas and elements (i.e., the tot lot, pools, light poles, street signs, entrance features, community fence, streets, sidewalks, trees, plants, flowers, etc.) and when using a common area which results in damage or destruction of a common area property, and violations of on-street and alley parking rules. As the common areas are owned and maintained by the Association, damages and/or destruction resulting from willful and malicious conduct may also be referred to the Montgomery County Police Department in Maryland for prosecution of the person(s) involved.

(3) Depending on the duration of a violation of a non-recurring nature, the respective committee, in its sole discretion, may reclassify the violation as a violation of a recurring nature.

B. Violations of a recurring nature.

If the violation is a determined to be a continuing violation, a committee may levy a fine between $100.00 and $200.00 for the original violation, and each day the violation continues will be deemed a separate violation, subject to a separate fine, not to exceed an amount between $25.00 and $50.00 for each offense. Written notice of the committee's determination and any fine(s) shall be provided to the owner and if applicable to any tenants, residents or guests.

Examples of fines of recurring nature include, but are not limited to, the following: (1) architectural modifications/alterations that have not been approved by the Architectural Control Committee such as changing the exterior color of a home; building a fence or deck; modifications of landscaping; installation of storm doors on the front of a house; etc., (2) maintaining/storing items in the Association's common areas without the express written permission of the Board of Directors and (3) failure to mow and keep the orderly appearance of a lawn.

C. Collection of Fines.

Any fines levied shall be placed on the owner's assessment account and be subject to collection action, including, but not limited to the imposition of a lien against the owner's property, in the same manner and under the same terms as any other assessment. Nothing in this Resolution shall be construed to interfere with any right that an owner may have to obtain payment of the amount of any fine(s) assessed against his or her Lot from a violator occupying or visiting such Lot.